

AMENDMENTS TO THE CALIFORNIA RULES OF COURT

Adopted by the Judicial Council on October 28, 2011,
effective on January 1, 2012

Rule 2.503. Public access.....	3
Rule 3.826. Trial after arbitration	3
Rule 3.827. Entry of award as judgment.....	4
Rule 3.1152. <u>Requests for protective orders to prevent civil harassment, and workplace violence, private postsecondary school violence, and elder or dependent adult abuse</u>	4
Rule 3.1153. Minors may appear without counsel to seek specified restraining orders....	6
Rule 3.1372. <u>Petitions for relief from financial obligations during military service</u>	6
Rule 4.552. Habeas corpus jurisdiction	7
Rule 5.83. <u>Family Centered Case Resolution</u>	8
Rule 5.93. <u>Attorney’s fees and costs</u>	13
Rule 5.242. Qualifications, rights, and responsibilities of counsel appointed to represent a child in family law proceedings	15
Rule 5.250. <u>Children’s participation and testimony in family court proceedings</u>	17
Rule 5.380. <u>Agreement and judgment of parentage in Domestic Violence Prevention Act cases</u>	22
Rule 5.381. <u>Modification of child custody, visitation, and support orders in Domestic Violence Prevention Act cases</u>	23
Rule 5.502. Definitions and use of terms.....	24
Rule 5.504. Judicial Council forms.....	26
Rule 5.530. Persons present.....	27
Rule 5.531. <u>Appearance by telephone (§ 388; Pen. Code § 2625)</u>	30
Rule 5.555. <u>Hearing to consider termination of juvenile court jurisdiction over a nonminor—Dependents or wards of the juvenile court in a foster care placement and nonminor dependents (§§ 224.1(b), 303, 366.31, 391, 607.3, 16501.1(f)(16))</u>	31
Rule 5.630. Restraining orders.....	39
Rule 5.645. Mental health or condition of child; court procedures	44
Rule 5.707. <u>Review hearing requirements for child approaching majority (§§ 224.1, 366(a)(1)(F), 366.3(l), 366.3(n), 16501.1(f)(16))</u>	46
Rule 5.740. Hearings subsequent to a permanent plan (§§ 366.26, 366.3, 391)	50
Rule 5.812. <u>Additional requirements for any hearing to terminate jurisdiction over child in foster care and for status review hearing for child approaching majority (§§ 450, 451, 727.2(i)–(j), 778)</u>	50
Rule 5.900. <u>Nonminor dependent—Preliminary provisions (§§ 224.1(b), 295, 303, 366, 366.3, 388, 391, 607(a))</u>	60
Rule 5.903. <u>Nonminor dependent status review hearing (§§ 224.1(b), 295, 366(f), 366.1, 366.3)</u>	62
Rule 5.906. <u>Request by nonminor for the juvenile court to resume jurisdiction (§§ 224.1(b), 303, 388(e))</u>	67
Rule 8.385. Proceedings after the petition is filed	79

1 **Rule 2.503. Public access**

2
3 **(a)–(b) *****

4
5 **(c) Courthouse electronic access only**

6
7 A court that maintains the following records in electronic form must provide
8 electronic access to them at the courthouse, to the extent it is feasible to do so, but
9 may provide remote electronic access only to the records governed by (b):

10
11 ~~(1)–(7)~~ ***

12
13 (8) Records in a private postsecondary school violence prevention proceeding
14 under Code of Civil Procedure section 527.85;

15
16 ~~(8)~~(9) Records in an elder or dependent adult abuse prevention proceeding under
17 Welfare and Institutions Code section 15657.03; and

18
19 ~~(9)~~(10) Records in proceedings to compromise the claims of a minor or a person
20 with a disability.

21
22 *(Subd (c) amended effective January 1, 2012; previously amended effective July 1, 2004,*
23 *January 1, 2007, January 1, 2008, and January 1, 2010.)*

24
25 **(d)–(i) *****

26
27 *Rule 2.503 amended effective January 1, 2012; adopted as rule 2073 effective July 1, 2002;*
28 *previously amended and renumbered effective January 1, 2007; previously amended effective*
29 *July 1, 2004, January 1, 2005, January 1, 2008, and January 1, 2010.*

30
31
32 **Rule 3.826. Trial after arbitration**

33
34 **(a) Request for trial; deadline**

35
36 Within ~~30~~ 60 days after the arbitration award is filed with the clerk of the court, a
37 party may request a trial by filing with the clerk a request for trial, with proof of
38 service of a copy upon all other parties appearing in the case. A request for trial
39 filed after the parties have been served with a copy of the award by the arbitrator,
40 but before the award has been filed with the clerk, is valid and timely filed. The ~~30~~
41 60-day period within which to request trial may not be extended.
42

(Subd (a) amended effective January 1, 2012; previously amended effective January 1, 1985, July 1, 1990, January 1, 2004, and January 1, 2007.)

(b)–(d) ***

Rule 3.826 amended effective January 1, 2012; adopted as rule 1616 effective July 1, 1976; previously amended effective July 1, 1979, July 1, 1990, and January 1, 2004; previously amended and renumbered effective January 1, 2007.

Rule 3.827. Entry of award as judgment

(a) Entry of award as judgment by clerk

The clerk must enter the award as a judgment immediately upon the expiration of ~~30~~ 60 days after the award is filed if no party has, during that period, served and filed either:

(1) A request for trial as provided in these rules; or

(2) A Request for Dismissal (form CIV-110) of the entire case or as to all parties to the arbitration. The Request for Dismissal must be fully completed and must include the signatures of all those whose consent is required for dismissal.

(Subd (a) amended effective January 1, 2012.)

(b)–(c) ***

Rule 3.827 amended effective January 1, 2012; adopted effective January 1, 2007.

Rule 3.1152. Requests for protective orders to prevent civil harassment, and workplace violence, private postsecondary school violence, and elder or dependent adult abuse

(a) Scheduling of hearing

~~On the filing of a petition for an injunction under Code of Civil Procedure section 527.6 or 527.8, a hearing must be set in accordance with the requirements of subdivision (d) of section 527.6 or subdivision (f) of section 527.8.~~

(a) Application

1 This rule applies to requests for protective orders under Code of Civil Procedure
2 sections 527.6, 527.8, and 527.85, and Welfare and Institutions Code section
3 15657.03.

4
5 *(Subd (a) adopted effective January 1, 2012.)*

6
7 **(b) No memorandum required ~~Temporary restraining order~~**

8
9 Unless ordered by the court, no memorandum is required in support of or in
10 opposition to a request for a protective order. ~~A temporary restraining order may be~~
11 ~~granted in accordance with the provisions of Code of Civil Procedure section~~
12 ~~527.6(c) or 527.8(e), but unless otherwise ordered no memorandum is required.~~

13
14 *(Subd (b) amended effective January 1, 2012; previously amended effective July 1, 1995,*
15 *January 1, 2002, and January 1, 2007.)*

16
17 **(c) Service of petition requests, notices, and orders**

18
19 ~~The petition and order to show cause,~~ request for a protective order, notice of
20 hearing, and any temporary restraining order, must be personally served on the
21 ~~defendant~~ respondent at least five days before the hearing, unless the court for good
22 cause orders a shorter time. Service must be made in the manner provided by law
23 for personal service of summons in civil actions.

24
25 *(Subd (c) amended effective January 1, 2012; previously amended effective January 1,*
26 *1993, and January 1, 2007.)*

27
28 **(d) Response by ~~defendant~~**

29
30 The response to a request for a protective order may be written or oral, or both. If A
31 a written response by defendant must be filed and delivered to plaintiff or
32 plaintiff's is served on the petitioner or, if the petitioner is represented, on the
33 petitioner's attorney no later than 48 hours at least two days before the hearing-, the
34 petitioner is not entitled to a continuance on account of the response.

35
36 *(Subd (d) amended effective January 1, 2012; previously amended effective January 1,*
37 *2007.)*

38
39 **(e) Continuance**

40
41 A respondent may request continuance of the hearing upon a showing of good
42 cause. If the court in its discretion grants the continuance, any temporary

1 restraining order that has been granted remains in effect until the end of the
2 continued hearing unless otherwise ordered by the court.

3
4 *(Subd (e) adopted effective January 1, 2012.)*

5
6 *Rule 3.1152 amended effective January 1, 2012; adopted as rule 363 effective January 1, 1984;*
7 *previously amended effective January 1, 1993, July 1, 1995, January 1, 2000, and January 1,*
8 *2002; previously amended and renumbered effective January 1, 2007.*

9
10
11 **~~Rule 3.1153. Minors may appear without counsel to seek specified restraining~~**
12 **~~orders~~**

13
14 ~~A minor, accompanied by a duly appointed and acting guardian ad litem, may be~~
15 ~~permitted to appear in court without counsel for the limited purpose of obtaining or~~
16 ~~opposing:~~

17
18 ~~(1) An injunction or temporary restraining order or both to prohibit harassment under~~
19 ~~Code of Civil Procedure section 527.6;~~

20
21 ~~(2) An injunction or temporary restraining order or both against violence or a credible~~
22 ~~threat of violence in the workplace under Code of Civil Procedure section 527.8;~~

23
24 ~~(3) A protective order under Family Code section 6200 et seq.; or~~

25
26 ~~(4) A protective order under Family Code sections 7710 and 7720.~~

27
28 ~~In making the determination concerning allowing appearance without counsel, the court~~
29 ~~should consider whether the minor and the guardian have divergent interests.~~

30
31 *Rule 3.1153 repealed effective January 1, 2012; adopted as rule 364 effective July 1, 1995;*
32 *previously amended and renumbered effective January 1, 2007.*

33
34 **Chapter 8. Other Civil Petitions**

35
36 **Rule 3.1372. Petitions for relief from financial obligations during military service**

37
38 **(a) Application**

39
40 This rule applies to petitions for relief from financial obligations made by a
41 servicemember under Military and Veterans Code section 409.3.
42

1 **(b) Service of petition**

2
3 Service of the petition for relief and all supporting papers must be made in the
4 manner provided by law for service of summons in civil actions.
5

6 **(c) No memorandum required**

7
8 Unless ordered by the court, no memorandum is required in support of or
9 opposition to a petition for relief.
10

11 *Rule 3.1372 adopted effective January 1, 2012.*
12

13 **Rule 4.552. Habeas corpus jurisdiction**

14
15 **(a) Proper court to hear petition**

16
17 Except as stated in (b) ~~and (c)~~, the petition ~~must~~ should be heard and resolved in the
18 court in which it is filed.
19

20 *(Subd (a) amended effective January 1, 2012; previously amended effective January 1,*
21 *2006, and January 1, 2007.)*
22

23 **(b) Transfer of petition—~~discretionary~~**

24
25 (1) ***
26

27 (2) If the superior court in which the petition is filed determines that the matter
28 may be more properly heard by the superior court of another county, it may
29 nonetheless retain jurisdiction in the matter or, without first determining
30 whether a prima facie case for relief exists, order the matter transferred to the
31 other county. Transfer may be ordered in the following circumstances:
32

33 (A)—(B) ***
34

35 (C) If the petition challenges the denial of parole or the petitioner's
36 suitability for parole and is filed in a superior court other than the court
37 that rendered the underlying judgment, the court in which the petition is
38 filed should transfer the petition to the superior court in which the
39 underlying judgment was rendered.
40

41 (3)—(4) ***
42

(Subd (b) amended effective January 1, 2012; previously amended effective January 1, 2006.)

~~(e)~~—Transfer of petition—mandatory

If the petition challenges the denial of parole or the petitioner’s suitability for parole and is filed in a superior court other than the court that rendered the underlying judgment, the court in which the petition is filed must transfer the petition to the superior court in which the underlying judgment was rendered. The court must transfer the case before determining whether the petition states a prima facie case for relief and specify in the order of transfer the reason for the transfer.

~~(d)~~(c) Single judge must decide petition

(Subd (c) relettered effective January 1, 2012; adopted as subd (c) effective January 1, 2002; previously relettered as subd. (d) effective January 1, 2006.)

Rule 4.552 amended effective January 1, 2012; adopted effective January 1, 2002; previously amended effective January 1, 2006, and January 1, 2007.

Advisory Committee Comment

Subdivision ~~(e)~~(b)(2)(C). This subdivision is based on the California Supreme Court decision in *In re Roberts* (2005) 36 Cal.4th 575, which provides that petitions for writ of habeas corpus challenging denial or suitability for parole ~~are to~~ should first be adjudicated in the trial court that rendered the underlying judgment.

Rule 5.83. Family Centered Case Resolution

(a) Purpose

This rule establishes processes and procedures for courts to manage cases from initial filing to final disposition in an effective and timely manner. It is intended to advance the goals of Family Code section 2450(a) and Standards of Judicial Administration, standard 5.30.

(b) Definitions

(1) “Family centered case resolution process” refers to the process employed by the court to ensure that family law cases move through the court process from filing to final disposition in a timely, fair, and effective manner.

- 1
2 (2) “Disposition” refers to final judgment, dismissal, change of venue, or
3 consolidation of the case into a lead case. Courts may continue a case in, or
4 return a case to, the family centered case resolution process after disposition.
5
6 (3) “Status conference” refers to court events scheduled with the parties and
7 attorneys for the purpose of identifying the current status of the case and
8 determining the next steps required to reach disposition.
9
10 (4) “Family centered case resolution conference” refers to a conference
11 scheduled with parties, attorneys, and a judicial officer to develop and
12 implement a family centered case resolution plan under Family Code section
13 2451.
14

15 **(c) Family centered case resolution process**
16

- 17 (1) Beginning January 1, 2012, courts must develop a family centered case
18 resolution process which must be fully implemented by January 1, 2013. The
19 family centered case resolution process must identify and assist all
20 dissolution, legal separation, nullity, and parentage cases to progress through
21 the court process toward disposition effectively in a timely manner. The court
22 may identify other family law case types to include in the family centered
23 case resolution process.
24
25 (2) For cases filed on or after January 1, 2013, the court must include as part of
26 the family centered case resolution process a review of all dissolution, legal
27 separation, nullity, and parentage cases within at least 180 days from the date
28 of the initial filing and at a minimum, at least every 180 days thereafter until
29 disposition in order to determine the most appropriate next steps to help
30 ensure an effective, fair, and timely resolution. Unless the court determines
31 that procedural milestones are being met, the review must include at least one
32 of the following: (1) a status conference or (2) a family centered case
33 resolution conference. Nothing in this section prohibits courts from setting
34 more frequent review dates.
35
36 (3) If, after 18 months from the date the petition was filed, both parties have
37 failed to participate in the case resolution process as determined by the court,
38 the court’s obligation for further review of the case is relieved until the case
39 qualifies for dismissal under Code of Civil Procedure section 583.210 or
40 583.310, or until the parties reactivate participation in the case, and the case
41 is not counted toward the goals for disposition set out in (c)(5).
42

- 1 (4) In deciding whether a case is progressing in an effective and timely manner,
2 the court should consider procedural milestones including the following:
3
- 4 (A) A proof of service of summons and petition should be filed within 60
5 days of case initiation;
6
- 7 (B) If no response has been filed, and the parties have not agreed on an
8 extension of time to respond, a request to enter default should be
9 submitted within 60 days after the date the response was due;
10
- 11 (C) The petitioner's preliminary declaration of disclosure should be served
12 within 60 days of the filing of the petition;
13
- 14 (D) When a default has been entered, a judgment should be submitted
15 within 60 days of the entry of default;
16
- 17 (E) Whether a trial date has been requested or scheduled; and
18
- 19 (F) When the parties have notified the court that they are actively
20 negotiating or mediating their case, a written agreement for judgment is
21 submitted within six months of the date the petition was filed, or a
22 request for trial date is submitted.
23
- 24 (5) For dissolution, legal separation, and nullity cases initially filed on or after
25 January 1, 2014, the goals of any family centered case resolution process
26 should be to finalize dispositions as follows:
27
- 28 (A) At least 20 percent are disposed within 6 months from the date the
29 petition was filed;
30
- 31 (B) At least 75 percent are disposed within 12 months from the date the
32 petition was filed; and
33
- 34 (C) At least 90 percent are disposed within 18 months from the date the
35 petition was filed.
36
- 37 (6) The court may select various procedural milestones at which to assist cases in
38 moving toward disposition in an effective and timely manner. Types of
39 assistance that can be provided include the following:
40
- 41 (A) Notifying the parties and attorneys by mail, telephone, e-mail, or other
42 electronic method of communication of the current status of the case
43 and the next procedural steps required to reach disposition;

- 1
- 2 (B) Implementing a schedule of status conferences for cases to identify the
- 3 status of the case and determine the next steps required to progress
- 4 toward disposition;
- 5
- 6 (C) Providing assistance to the parties at the time scheduled for hearings on
- 7 requests for orders to identify the status of the case and determine the
- 8 next steps required to reach disposition;
- 9
- 10 (D) Providing financial and property settlement opportunities to the parties
- 11 and their attorneys with judicial officers or qualified attorney settlement
- 12 officers;
- 13
- 14 (E) Scheduling a family centered case resolution conference to develop and
- 15 implement a family centered case resolution plan under Family Code
- 16 section 2451.
- 17
- 18 (7) In deciding that a case requires a family centered case resolution conference,
- 19 the court should consider, in addition to procedural milestones, factors
- 20 including the following:
- 21
- 22 (A) Difficulty in locating and serving the respondent;
- 23
- 24 (B) Complexity of issues;
- 25
- 26 (C) Nature and extent of anticipated discovery;
- 27
- 28 (D) Number and locations of percipient and expert witnesses;
- 29
- 30 (E) Estimated length of trial;
- 31
- 32 (F) Statutory priority for issues such as custody and visitation of minor
- 33 children;
- 34
- 35 (G) Extent of property and support issues in controversy;
- 36
- 37 (H) Existence of issues of domestic violence, child abuse, or substance
- 38 abuse;
- 39
- 40 (I) Pendency of other actions or proceedings that may affect the case; and
- 41
- 42 (J) Any other factor that would affect the time for disposition.
- 43

1 **(d) Family centered case resolution conferences**

- 2
- 3 (1) The court may hold an initial family centered case resolution conference to
4 develop a specific case resolution plan. The conference is not intended to be
5 an evidentiary hearing.
- 6
- 7 (2) Family centered case resolution conferences must be heard by a judicial
8 officer. On the court's initiative or at the request of the parties, to enhance
9 access to the court, the conference may be held in person, by telephone, by
10 videoconferencing, or by other appropriate means of communication.
- 11
- 12 (3) At the conference, counsel for each party and each self-represented litigant
13 must be familiar with the case and must be prepared to discuss the party's
14 positions on the issues.
- 15
- 16 (4) With the exception of mandatory child custody mediation and mandatory
17 settlement conferences, before alternative dispute resolution (ADR) is
18 included in a family centered case resolution plan under Family Code section
19 2451(a)(2), the court must inform the parties that their participation in any
20 court recommended ADR services is voluntary and that ADR services can be
21 part of a plan only if both parties voluntarily opt to use these services.
22 Additionally, the court must:
- 23
- 24 (A) Inform the parties that ADR may not be appropriate in cases involving
25 domestic violence and provide information about separate sessions; and
- 26
- 27 (B) Ensure that all court-connected providers of ADR services that are part
28 of a family centered case resolution plan have been trained in assessing
29 and handling cases that may involve domestic violence.
- 30
- 31 (5) Nothing in this rule prohibits an employee of the court from reviewing the
32 file and notifying the parties of any deficiencies in their paperwork before the
33 parties appear in front of a judicial officer at a family centered case resolution
34 conference. This type of assistance can occur by telephone, in person, or in
35 writing, on or before each scheduled family centered case resolution
36 conference. However, this type of procedural assistance is not intended to
37 replace family centered case resolution plan management or to create a
38 barrier to litigants' access to a judicial officer.
- 39

40 **(e) Family centered case resolution plan order**

- 41
- 42 (1) Family centered case resolution plans as ordered by the court must comply
43 with Family Code sections 2450(b) and 2451.

(2) The family centered case resolution plan order should set a schedule for subsequent family centered case resolution conferences and otherwise provide for management of the case.

(f) Family centered case resolution order without appearance

If the court determines that appearances at a family centered case resolution conference are not necessary, the court may notify the parties and, if stipulated, issue a family centered case resolution order without an appearance at a conference.

(g) Family centered case resolution information

(1) Upon the filing of first papers in dissolution, legal separation, nullity, or parentage actions the court must provide the filing party with the following:

- (A) Written information summarizing the process of a case through disposition;
- (B) A list of local resources that offer procedural assistance, legal advice or information, settlement opportunities, and domestic violence services;
- (C) Instructions for keeping the court informed of the person's current address and phone number, and e-mail address;
- (D) Information for self-represented parties about the opportunity to meet with court self-help center staff or a family law facilitator; and
- (E) Information for litigants on how to request a status conference, or a family centered case resolution conference earlier than or in addition to, any status conference or family centered case resolution conferences scheduled by the court.

Rule 5.83 adopted effective January 1, 2012.

Rule 5.93. Attorney's fees and costs

(a) Application

This rule applies to attorney's fees and costs based on financial need, as described in Family Code sections 2030, 2032, 3121, 3557, and 7605.

1 **(b) Request**

2
3 (1) Except as provided in Family Code section 2031(b), to request attorney's fees
4 and costs, a party must complete, file and serve the following documents:

5
6 (A) Application for Order (form FL-310) attached to an Order to Show
7 Cause (form FL-300) or a Notice of Motion (form FL-301);

8
9 (B) Request for Attorney's Fees and Costs Attachment (form FL-319) or a
10 comparable declaration that addresses the factors covered in form FL-
11 319;

12
13 (C) A current Income and Expense Declaration (form FL-150);

14
15 (D) A personal declaration in support of the request for attorney's fees and
16 costs, either using Supporting Declaration for Attorney's Fees and
17 Costs Attachment (form FL-158) or a comparable declaration that
18 addresses the factors covered in form FL-158; and

19
20 (E) Any other papers relevant to the relief requested.

21
22 (2) The party requesting attorney's fees and costs must provide the court with
23 sufficient information about the attorney's hourly billing rate; the nature of
24 the litigation; the attorney's experience in the particular type of work
25 demand; the fees and costs incurred or anticipated; and why the requested
26 fees and costs are just, necessary, and reasonable.

27
28 **(c) Response to request**

29
30 To respond to the request for attorney's fees and costs, a party must complete, file,
31 and serve the following documents:

32
33 (1) Responsive Declaration to Order to Show Cause or Notice of Motion (form
34 FL-320);

35
36 (2) A current Income and Expense Declaration (form FL-150);

37
38 (3) A personal declaration responding to the request for attorney's fees and costs,
39 either using Supporting Declaration for Attorney's Fees and Costs
40 Attachment (form FL-158) or a comparable declaration that addresses the
41 factors covered in form FL-158; and

42
43 (4) Any other papers relevant to the relief requested.

1
2 **(d) Income and expense declaration**

3
4 Both parties must complete, file, and serve a current *Income and Expense*
5 *Declaration* (form FL-150). A *Financial Statement (Simplified)* (form FL-155) is
6 not appropriate for use in proceedings to determine or modify attorney's fees and
7 costs.

8
9 (1) "Current" is defined as being completed within the past three months,
10 provided that no facts have changed. The form must be sufficiently
11 completed to allow determination of the issues.

12
13 (2) When attorney's fees are requested by either party, the section on the *Income*
14 *and Expense Declaration* (form FL-150) related to the amount in savings,
15 credit union, certificates of deposit, and money market accounts must be fully
16 completed, as well as the section related to the amount of attorney's fees
17 incurred, currently owed, and the source of money used to pay such fees.

18
19 **(e) Court findings and order**

20
21 The court may make findings and orders regarding attorney's fees and costs by
22 using *Attorney's Fees and Costs Order Attachment* (form FL-346). This form is an
23 attachment to *Findings and Order After Hearing* (form FL-340), *Judgment* (form
24 FL-180), and *Judgment (Uniform Parentage—Custody and Support)* (form FL-
25 250).

26
27 *Rule 5.93 adopted effective January 1, 2012.*

28
29 **Rule 5.242. Qualifications, rights, and responsibilities of counsel appointed to**
30 **represent a child in family law proceedings**

31
32 **(a)–(i) *****

33
34 **(j) Responsibilities of counsel for a child**

35
36 Counsel is charged with the representation of the ~~best interest of the child's best~~
37 interest. The role of the child's counsel is to gather ~~facts~~ evidence that bears on the
38 best interest of the child and present ~~those facts~~ that admissible evidence to the
39 court, ~~including the child's wishes when counsel deems it appropriate for~~
40 ~~consideration by the court under Family Code section 3042.~~ in any manner
41 appropriate for the counsel of a party. If the child so desires, the child's counsel
42 must present the child's wishes to the court.

1 (1) ~~The e~~Counsel's duties, unless under the circumstances it is inappropriate to
2 exercise the duties, include those under Family Code section 3151:

3
4 ~~(1)(A)~~ Interviewing the child;

5
6 ~~(2)(B)~~ Reviewing the court files and all accessible relevant records
7 available to both parties; and

8
9 ~~(3)(C)~~ Making any further investigations that counsel considers
10 necessary to ascertain the facts relevant to the custody or visitation
11 hearings;

12
13 ~~(4) Participating in the proceeding to the degree necessary to adequately~~
14 ~~represent the child, including introducing and examining counsel's own~~
15 ~~witnesses and presenting arguments to the court concerning the child's~~
16 ~~welfare; and~~

17
18 ~~(5) Preparing, at the court's request, a written statement of issues and contentions~~
19 ~~setting forth the facts that bear on the best interest of the child.~~

20 (2) Counsel must serve notices and pleadings on all parties consistent with the
21 requirements for parties.

22
23 (3) Counsel may introduce and examine witnesses, present arguments to the
24 court concerning the child's welfare, and participate further in the proceeding
25 to the degree necessary to represent the child adequately.

26
27 (4) In any case in which counsel is representing a child who is called to testify in
28 the proceeding, counsel must:

29
30 (A) Provide information to the child in an age-appropriate manner about the
31 limitations on confidentiality and the possibility that information
32 provided to the court may be on the record and provided to the parties
33 in the case;

34
35 (B) Allow but not require the child to state a preference regarding custody
36 or visitation and, in an age-appropriate manner, provide information
37 about the process by which the court will make a decision;

38
39 (C) Provide procedures relevant to the child's participation and, if
40 appropriate, provide an orientation to the courtroom where the child
41 will be testifying; and
42

(D) Inform the parties and then the court about the client's desire to provide input.

(Subd (j) amended effective January 1, 2012.)

(k) * * *

Rule 5.242 amended effective January 1, 2012; adopted effective January 1, 2008.

Rule 5.250. Children's participation and testimony in family court proceedings

(a) Children's participation

This rule is intended to implement Family Code section 3042. Children's participation in family law matters must be considered on a case-by-case basis. No statutory mandate, rule, or practice requires children to participate in court or prohibits them from doing so. When a child wishes to participate, the court should find a balance between protecting the child, the statutory duty to consider the wishes of and input from the child, and the probative value of the child's input while ensuring all parties' due process rights to challenge evidence relied upon by the court in making custody decisions.

(b) Determining if the child wishes to address the court

(1) The following persons must inform the court if they have information indicating that a child in a custody or visitation (parenting time) matter wishes to address the court:

(A) A minor's counsel;

(B) An evaluator;

(C) An investigator; and

(D) A child custody recommending counselor who provides recommendations to the judge under Family Code section 3183.

(2) The following persons may inform the court if they have information indicating that a child wishes to address the court:

(A) A party; and

1 (B) A party's attorney.

2
3 (3) In the absence of information indicating a child wishes to address the court,
4 the judicial officer may inquire whether the child wishes to do so.

5
6 **(c) Guidelines for determining whether addressing the court is in the child's best**
7 **interest**

8
9 (1) When a child indicates that he or she wishes to address the court, the judicial
10 officer must consider whether involving the child in the proceedings is in the
11 child's best interest.

12
13 (2) If the child indicating an interest in addressing the court is 14 years old or
14 older, the judicial officer must hear from that child unless the court makes a
15 finding that addressing the court is not in the child's best interest and states
16 the reasons on the record.

17
18 (3) In determining whether addressing the court is in a child's best interest, the
19 judicial officer should consider the following:

20
21 (A) Whether the child is of sufficient age and capacity to reason to form an
22 intelligent preference as to custody or visitation (parenting time);

23
24 (B) Whether the child is of sufficient age and capacity to understand the
25 nature of testimony;

26
27 (C) Whether information has been presented indicating that the child may
28 be at risk emotionally if he or she is permitted or denied the opportunity
29 to address the court or that the child may benefit from addressing the
30 court;

31
32 (D) Whether the subject areas about which the child is anticipated to
33 address the court are relevant to the court's decisionmaking process;
34 and

35
36 (E) Whether any other factors weigh in favor of or against having the child
37 address the court, taking into consideration the child's desire to do so.

38
39 **(d) Guidelines for receiving testimony and other input**

40
41 (1) If the court precludes the calling of a child as a witness, alternatives for the
42 court to obtain information or other input from the child may include, but are
43 not limited to:

- 1
- 2 (A) The child's participation in child custody mediation under Family Code
- 3 section 3180;
- 4
- 5 (B) Appointment of a child custody evaluator or investigator under Family
- 6 Code section 3110 or Evidence Code section 730;
- 7
- 8 (C) Admissible evidence provided by the parents, parties, or witnesses in
- 9 the proceeding;
- 10
- 11 (D) Information provided by a child custody recommending counselor
- 12 authorized to provide recommendations under Family Code section
- 13 3183(a); and
- 14
- 15 (E) Information provided from a child interview center or professional so
- 16 as to avoid unnecessary multiple interviews.
- 17
- 18 (2) If the court precludes the calling of a child as a witness and specifies one of
- 19 the other alternatives, the court must require that the information or evidence
- 20 obtained by alternative means and provided by a professional or nonparty:
- 21
- 22 (A) Be in writing and fully document the child's views on the matters on
- 23 which the child wished to express an opinion;
- 24
- 25 (B) Describe the child's input in sufficient detail to assist the court in its
- 26 adjudication process;
- 27
- 28 (C) Be provided to the court and to the parties by an individual who will be
- 29 available for testimony and cross-examination; and
- 30
- 31 (D) Be filed in the confidential portion of the family law file.
- 32
- 33 (3) On deciding to take the testimony of a child, the judicial officer should
- 34 balance the necessity of taking the child's testimony in the courtroom with
- 35 parents and attorneys present with the need to create an environment in which
- 36 the child can be open and honest. In each case in which a child's testimony
- 37 will be taken, courts should consider:
- 38
- 39 (A) Where the testimony will be taken, including the possibility of closing
- 40 the courtroom to the public or hearing from the child on the record in
- 41 chambers;
- 42

1 (B) Who should be present when the testimony is taken, such as: both
2 parents and their attorneys, only attorneys in the case in which both
3 parents are represented, the child's attorney and parents, or only a court
4 reporter with the judicial officer;

5
6 (C) How the child will be questioned, such as whether only the judicial
7 officer will pose questions that the parties have submitted, whether
8 attorneys or parties will be permitted to cross-examine the child, or
9 whether a child advocate or expert in child development will ask the
10 questions in the presence of the judicial officer and parties or a court
11 reporter; and

12
13 (D) Whether a court reporter is available in all instances, but especially
14 when testimony may be taken outside the presence of the parties and
15 their attorneys and, if not, whether it will be possible to provide a
16 listening device so that testimony taken in chambers may be heard
17 simultaneously by the parents and their attorneys in the courtroom or to
18 otherwise make a record of the testimony.

19
20 (4) In taking testimony from a child, the court must take special care to protect
21 the child from harassment or embarrassment and to restrict the unnecessary
22 repetition of questions. The court must also take special care to ensure that
23 questions are stated in a form that is appropriate to the witness's age or
24 cognitive level. If the child is not represented by an attorney, the court must
25 inform the child in an age-appropriate manner about the limitations on
26 confidentiality and that the information provided to the court will be on the
27 record and provided to the parties in the case. In the process of listening to
28 and inviting the child's input, the court must allow but not require the child to
29 state a preference regarding custody or visitation and should, in an age-
30 appropriate manner, provide information about the process by which the
31 court will make a decision.

32
33 (5) In any case in which a child will be called to testify, the court may consider
34 the appointment of minor's counsel for that child. The court may consider
35 whether such appointment will cause unnecessary delay or otherwise
36 interfere with the child's ability to participate in the process. In addition to
37 adhering to the requirements for minor's counsel under Family Code section
38 3151 and rules 5.240, 5.241, and 5.242, minor's counsel must:

39
40 (A) Provide information to the child in an age-appropriate manner about the
41 limitations on confidentiality and indicate to the child the possibility
42 that information provided to the court will be on the record and
43 provided to the parties in the case;

1
2 (B) Allow but not require the child to state a preference regarding custody
3 or visitation (parenting time) and, in an age-appropriate manner,
4 provide information about the process by which the court will make a
5 decision;

6
7 (C) Provide procedures relevant to the child's participation and, if
8 appropriate, provide an orientation to the courtroom where the child
9 will be testifying; and

10
11 (D) Inform the parties and then the court about the client's desire to provide
12 input.

13
14 (6) No testimony of a child may be received without such testimony being heard
15 on the record or in the presence of the parties. This requirement may not be
16 waived by stipulation.

17
18 **(e) Responsibilities of court-connected or appointed professionals**

19
20 A child custody evaluator, a child custody recommending counselor, an
21 investigator, or a mediator appointed or assigned to meet with a child in a family
22 court proceeding must:

23
24 (1) Provide information to the child in an age-appropriate manner about the
25 limitations on confidentiality and the possibility that information provided to
26 the professional may be shared with the court on the record and provided to
27 the parties in the case;

28
29 (2) Allow but not require the child to state a preference regarding custody and
30 visitation (parenting time), and, in an age-appropriate manner, provide
31 information about the process by which the court will make a decision; and

32
33 (3) Provide to the parents of the child participating in the court process
34 information about local court procedures relevant to the child's participation
35 and information about how to best support the child in an age-appropriate
36 manner during the court process.

37
38 **(f) Methods of providing information to parents and supporting children**

39
40 Courts should provide information to parties and parents and support for children
41 when children want to participate or testify or are otherwise involved in family law
42 proceedings. Such methods may include but are not limited to:

- (1) Having court-connected professionals meet jointly or separately with the parents or parties to discuss alternatives to having a child provide direct testimony;
- (2) Providing an orientation for a child about the court process and the role of the judicial officer in making decisions, how the courtroom or chambers will be set up, and what participating or testifying will entail;
- (3) Providing information to parents or parties before and after a child participates or testifies so that they can consider the possible effect on their child of participating or not participating in a given case;
- (4) Including information in child custody mediation orientation presentations and publications about a child's participation in family law proceedings;
- (5) Providing a children's waiting room; and
- (6) Providing an interpreter for the child, if needed.

(g) Education and training

Education and training content for court staff and judicial officers should include information on children's participation in family court processes, methods other than direct testimony for receiving input from children, and procedures for taking children's testimony.

Rule 5.250 adopted effective January 1, 2012.

Advisory Committee Comment

Rule 5.250 does not apply to probate guardianships except as and to the extent that the rule is incorporated or expressly made applicable by a rule of court in title 7 of the California Rules of Court.

Rule 5.380. Agreement and judgment of parentage in Domestic Violence Prevention Act cases

(a) No requirement to open separate case; no filing fee

- (1) If the court accepts the agreement of parentage and issues a judgment of parentage, the court may not require a party to open a separate parentage or other type of case in which to file the judgment. The court may open a

1 separate type of case, but the court must not charge a fee for filing the
2 judgment of parentage in the new case.

3
4 (2) When a judgment of parentage is filed in a Domestic Violence Prevention
5 Act case in which a restraining order is currently in effect, no filing fee may
6 be charged.

7
8 **(b) Retention**

9
10 The judgment must be retained by the court as a paternity record under
11 Government Code section 68152.

12
13 **(c) Notice of Entry of Judgment**

14
15 When *Agreement and Judgment of Parentage* (form DV-180) is filed, the court
16 must mail *Notice of Entry of Judgment* (form FL-190).

17
18 *Rule 5.380 adopted effective January 1, 2012.*

19
20
21 **Rule 5.381. Modification of child custody, visitation, and support orders in**
22 **Domestic Violence Prevention Act cases**

23
24 **(a) Application of rule**

25
26 This rule addresses court procedures for the modification of child custody,
27 visitation, and support orders in accordance with Family Code section 6340(a).

28
29 **(b) Filing fees**

30
31 A filing fee may be charged on a request to modify a child custody, visitation, or
32 support order only after a protective order, as defined in Family Code section 6218,
33 is no longer in effect. The filing fee, if charged, is the same as the filing fee for a
34 motion, application, or any other paper requiring a hearing after the first paper.

35
36 **(c) Retention**

37
38 The court must retain any child custody, visitation, or support order filed in a
39 Domestic Violence Prevention Act as a Family Law order under Government Code
40 section 68152(c)(5).

41
42 *Rule 5.381 adopted effective January 1, 2012.*

Rule 5.502. Definitions and use of terms

Definitions (§§ 202(e), 319, 361, 361.5(a)(3), 628.1, 636, 726, 727.3(c)(2), 727.4(d), 11400(v), 11400(y); 20 U.S.C. § 1415; 25 U.S.C. § 1903(2))

As used in these rules, unless the context or subject matter otherwise requires:

(1)–(15) ***

(16) “General jurisdiction” means the jurisdiction the juvenile court retained over a nonminor at the time of the dismissal of dependency jurisdiction, delinquency jurisdiction, or transition jurisdiction for the purpose of considering a request to resume its dependency jurisdiction or to assume or resume its transition jurisdiction over the person as a nonminor dependent.

~~(16)~~(17) ***

~~(17)~~(18) ***

~~(18)~~(19) ***

~~(19)~~(20) ***

~~(20)~~(21) ***

(22) “90-day Transition Plan” means the personalized plan developed at the direction of a child currently in a foster care placement during the 90-day period before the child’s planned exit from foster care when she or he attains 18 years of age or, if applicable, developed at the direction of a nonminor during the 90-day period prior to his or her anticipated exit from foster care. A 90-day Transition Plan must also be developed for and at the direction of a former foster child who remains eligible for Independent Living Program services during the 90-day period before he or she attains 18 years of age. The plan is as detailed as the child or nonminor chooses and includes information about a power of attorney for health care and specific options regarding housing, health insurance, education, local opportunities for mentors and continuing support services, workforce supports, and employment services. Inclusion of information in the plan relating to sexual health, services, and resources to ensure the child or nonminor is informed and prepared to make healthy decisions about his or her life is encouraged.

(23) “Nonminor dependent” means a person at least 18 years of age and no more than 20 years of age who was under an order for a foster care placement on his or her

1 18th birthday and is currently in foster care under the placement and care of the
2 county welfare department, county probation department, or Indian tribe that
3 entered into an agreement under Welfare and Institutions Code section 10553.1;
4 who is participating in a Transitional Independent Living Case Plan; and who is
5 meeting at least one of the education, training, or work requirements in Welfare and
6 Institutions Code section 11403(b) or is incapable of meeting one of those
7 requirements due a medical condition.
8

9 ~~(21)~~(24) ***

10
11 ~~(22)~~(25) ***

12
13 ~~(23)~~(26) ***

14
15 ~~(24)~~(27) ***

16
17 ~~(25)~~(28) ***

18
19 ~~(26)~~(29) ***

20
21 ~~(27)~~(30) ***

22
23 ~~(28)~~(31) ***

24
25 ~~(29)~~(32) ***

26
27 ~~(30)~~(33) ***

28
29 ~~(31)~~(34) ***

30
31 ~~(32)~~(35) ***

32
33 ~~(33)~~(36) ***

34
35 ~~(34)~~(37) ***

36
37 (38) "Transition jurisdiction" means the juvenile court's jurisdiction over a child or
38 nonminor described in Welfare and Institutions Code section 450.

39
40 (39) "Transitional independent living case plan" means a child's case plan submitted for
41 the last review hearing held before he or she turns 18 years of age or a nonminor
42 dependent's case plan, developed with the child or nonminor dependent and
43 individuals identified as important to him or her, signed by the child or nonminor

dependent and updated every six months, that describes the goals and objectives of how the child or nonminor will make progress in the transition to living independently and assume incremental responsibility for adult decision making; the collaborative efforts between the child or nonminor dependent and the social worker, probation officer, or Indian tribe and the supportive services as described in the Transitional Independent Living Plan (TILP) to ensure the child's or nonminor dependent's active and meaningful participation in one or more of the eligibility criteria described in subdivision (b) of section 11403; the child or nonminor dependent's appropriate supervised placement setting; the child or nonminor dependent's permanent plan for transition to living independently; and the steps the social worker, probation officer, or Indian tribe is taking to ensure the child or nonminor dependent achieves permanence, including maintaining or obtaining permanent connections to caring and committed adults, as set forth in paragraph (16) of subdivision (f) of section 16501.1.

(40) "Transitional Independent Living Plan" means the written unique, individualized service delivery plan for a child or nonminor mutually agreed upon by the child or nonminor and the social worker or probation officer that identifies the child's or nonminor's current level of functioning, emancipation goals, and the specific skills needed to prepare the child or nonminor to live independently upon leaving foster care.

~~(35)~~(41) ***

Rule 5.502 amended effective January 1, 2012; adopted as rule 1401 effective January 1, 1990; previously amended and renumbered effective January 1, 2007; previously amended effective July 1, 1992, July 1, 1997, January 1, 1998, January 1, 1999, January 1, 2001, July 1, 2002, January 1, 2003, January 1, 2008, July 1, 2010, and January 1, 2011.

Rule 5.504. Judicial Council forms

(a)–(b) ***

(c) Implementation of new and revised mandatory forms

To help implement mandatory Judicial Council juvenile forms:

(1) ***

(2) Until January 1, ~~2012~~2017, a court may produce court orders in any form or format as long as:

(A)–(D) ***

(Subd (c) amended effective January 1, 2012; adopted effective January 1, 2006;
previously amended effective January 1, 2007.)

Rule 5.504 amended effective January 1, 2012; adopted as rule 1402 effective January 1, 1991;
previously amended effective July 1, 1991, January 1, 1992, July 1, 1992, January 1, 1993,
January 1, 1994, January 1, 1998, January 1, 2001, January 1, 2006, and July 1, 2006;
previously amended and renumbered effective January 1, 2007.

Rule 5.530. Persons present

(a) ***

(b) **Persons present (§§ 280, 290.1, 290.2, 332, 347, 349, 353, 656, 658, 677, 679,
681, 700; 25 U.S.C. §§ 1911, 1931–1934)**

The following persons are entitled to be present:

(1) The child or nonminor dependent;

(2) All parents, de facto parents, Indian custodians, and guardians of the child or,
if no parent or guardian resides within the state or, if their places of residence
are not known;

(A) ~~Any~~ any adult relatives residing within the county or, if none;

(B) ~~Any~~ the adult relatives residing nearest the court;

(3)–(11) ***

(Subd (b) amended effective January 1, 2012; previously amended effective January 1,
1995, January 1, 1997, January 1, 2005, and January 1, 2007.)

(c)–(e) ***

(f) **Participation of incarcerated parent in dependency proceedings (§§ 290.1–294,
316.2, 349, 361.5(e); Pen. Code § 2625)**

The incarcerated parent of a child on behalf of whom a petition under section 300
has been filed may appear and participate in dependency proceedings as provided
in this subdivision.

- (1) Notice must be sent to an incarcerated parent of a detention hearing under section 319 as required by sections 290.1 and 290.2; a jurisdictional hearing under section 355 or a dispositional hearing under section 358 or 361 as required by section 291; a review hearing under section 366.21, 366.22, or 366.25 as required by section 293; or a permanency planning hearing under section 366.26 as required by section 294.
- (A) Notice to an incarcerated parent of a jurisdictional hearing, a dispositional hearing, or a section 366.26 permanency planning hearing at which termination of parental rights is at issue must inform the incarcerated parent of his or her right to be physically present at the hearing and explain how the parent may secure his or her presence or, if he or she waives the right to be physically present, appearance and participation.
- (B) Notice to an incarcerated parent of a detention hearing, a review hearing, or any other hearing in a dependency proceeding must inform the incarcerated parent of his or her options for requesting physical or telephonic appearance at and participation in the hearing.
- (C) The county welfare department must use the prisoner location system developed by the Department of Corrections and Rehabilitation to facilitate timely and effective notice of hearings to incarcerated parents.
- (2) The court must order an incarcerated parent's temporary removal from the institution where he or she is confined and production before the court at the time appointed for any jurisdictional hearing held under section 355 or dispositional hearing held under section 358 or 361, and any permanency planning hearing held under section 366.26 in which termination of parental rights is at issue.
- (3) For any other hearing in a dependency proceeding, including but not limited to a detention hearing or a review hearing, the court may order the temporary removal of the incarcerated parent from the institution where he or she is confined and the parent's production before the court at the time appointed for that hearing.
- (4) No hearing described in (2) may be held without the physical presence of the incarcerated parent and the parent's attorney unless the court has received:
- (A) A knowing waiver of the right to be physically present signed by the parent; or

1 (B) A declaration, signed by the person in charge of the institution in which
2 the parent is incarcerated, or his or her designated representative,
3 stating that the parent has, by express statement or action, indicated an
4 intent not to be physically present at the hearing.

5
6 (5) When issuing an order under (2) or (3), the court must require that *Order for*
7 *Prisoner's Appearance at Hearing Affecting Parental Rights* (form JV-450)
8 and a copy of *Prisoner's Statement Regarding Appearance at Hearing*
9 *Affecting Parental Rights* (form JV-451) be attached to the notice of hearing
10 and served on the parent, the parent's attorney, the person in charge of the
11 institution, and the sheriff's department of the county in which the order is
12 issued by the person responsible for giving notice of the hearing at issue not
13 less than 15 days before the date of the hearing.

14
15 (6) The court may, at the request of any party or on its own motion, permit an
16 incarcerated parent, who has waived his or her right to be physically present
17 at a hearing described in (2) or who has not been ordered to appear before the
18 court, to appear and participate in a hearing by videoconference consistent
19 with the requirements of rule 5.531. If video technology is not available, the
20 court may permit the parent to appear by telephone consistent with the
21 requirements of rule 5.531. The court must inform the parent that, if no
22 technology complying with rule 5.531 is available, the court may proceed
23 without his or her appearance and participation.

24
25 (7) The presiding judge of the juvenile court in each county should convene
26 representatives of the county welfare department, the sheriff's department,
27 parents' attorneys, and other appropriate entities to develop:

28
29 (A) Local procedures or protocols to ensure an incarcerated parent's
30 notification of, transportation to, and physical presence at court
31 hearings involving proceedings affecting his or her child as required or
32 authorized by Penal Code section 2625 and this rule unless he or she
33 has knowingly waived the right to be physically present; and

34
35 (B) Local procedures or protocols, consistent with (f)(6) and rule 5.531, to
36 facilitate the appearance and participation by videoconference or
37 telephone of an incarcerated parent who has knowingly waived the
38 right to be physically present.

39
40 *(Subd (f) adopted effective January 1, 2012.)*
41

1 *Rule 5.530 amended effective January 1, 2012; adopted as rule 1410 effective January 1, 1990;*
2 *previously amended effective January 1, 1995, January 1, 1997, January 1, 2001, and January 1,*
3 *2005; previously amended and renumbered effective January 1, 2007.*

4
5
6 **Rule 5.531. Appearance by telephone (§ 388; Pen. Code § 2625)**

7
8 **(a) Application**

9
10 The standards in (b) apply to any appearance or participation in court by telephone,
11 videoconference, or other digital or electronic means authorized by law.

12
13 **(b) Standards for local procedures or protocols**

14
15 Local procedures or protocols must be developed to ensure the fairness and
16 confidentiality of any proceeding in which a party is permitted by statute, rule of
17 court, or judicial discretion to appear by telephone. These procedures or protocols
18 must, at a minimum:

- 19
20 (1) Ensure that the party appearing by telephone can participate in the hearing in
21 real time, with no delay in aural or, if any, visual transmission or reception;
22
23 (2) Ensure that the statements of participants are audible to all other participants
24 and court staff and that the statements made by a participant are identified as
25 being made by that participant;
26
27 (3) Ensure that the proceedings remain confidential as required by law;
28
29 (4) Establish a deadline of no more than three court days before the proceeding
30 for notice to the court by the party or party's attorney (if any) of that party's
31 intent to appear by telephone, and permit that notice to be conveyed by any
32 method reasonably calculated to reach the court, including telephone, fax, or
33 other electronic means;
34
35 (5) Permit the party, on a showing of good cause, to appear by telephone even if
36 he or she did not provide timely notice of intent to appear by telephone;
37
38 (6) Permit a party to appear in person for a proceeding at the time and place for
39 which the proceeding was noticed, even if that party had previously notified
40 the court of an intent to appear by telephone;
41

1 (7) Ensure that any hearing at which a party appears by telephone is recorded and
2 reported to the same extent and in the same manner as if he or she had been
3 physically present;

4
5 (8) Ensure that the party appearing by telephone is able to communicate
6 confidentially with his or her attorney (if any) during the proceeding and
7 provide timely notice to all parties of the steps necessary to secure
8 confidential communication; and

9
10 (9) Provide for the development of the technological capacity to accommodate
11 appearances by telephone that comply with the requirements of this rule.

12
13 **(c) No independent right**

14
15 Nothing in this rule confers on any person an independent right to appear by
16 telephone, videoconference, or other electronic means in any proceeding.

17
18 *Rule 5.531 adopted effective January 1, 2012.*

19
20
21 **Rule 5.555. Hearing to consider termination of juvenile court jurisdiction over a**
22 **nonminor—dependents or wards of the juvenile court in a foster care**
23 **placement and nonminor dependents (§§ 224.1(b), 303, 366.31, 391, 607.3,**
24 **16501.1(f)(16))**

25
26 **(a) Applicability**

27
28 (1) This rule applies to any hearing during which the termination of the juvenile
29 court's jurisdiction over the following nonminors will be considered:

30
31 (A) A nonminor dependent as defined in section 11400(v); and

32
33 (B) A ward or dependent of the juvenile court who is a nonminor 18 years
34 of age or older, and subject to an order for a foster care placement.

35
36 (2) Nothing in the Welfare and Institutions Code or in the California Rules of
37 Court restricts the ability of the juvenile court to maintain dependency
38 jurisdiction or delinquency jurisdiction over a person, 18 years of age and
39 older, who does not meet the eligibility requirements for status as a nonminor
40 dependent and to proceed as to that person under the relevant sections of the
41 Welfare and Institutions Code and California Rules of Court.
42

1 **(b) Setting a hearing**

- 2
- 3 (1) A court hearing placed on the appearance calendar must be held prior to
- 4 terminating juvenile court jurisdiction.
- 5
- 6 (2) The hearing under this rule may be held during a hearing required under
- 7 section 366(f), 366.21, 366.22, 366.25, 366.3, 727.2, or 727.3 or rule 5.903.
- 8
- 9 (3) Notice of the hearing to the parents of a nonminor dependent as defined in
- 10 section 11400(v) is not required.
- 11
- 12 (4) If juvenile court jurisdiction was previously terminated with the juvenile
- 13 court retaining general jurisdiction for the purpose of resuming its
- 14 jurisdiction, and subsequently jurisdiction was resumed, a hearing under this
- 15 rule must be held if the nonminor dependent wants juvenile court jurisdiction
- 16 terminated again. The social worker or probation officer is not required to file
- 17 the 90-day Transition Plan, and the court need not make the findings included
- 18 in (d)(1)(L)(iii) or (d)(2)(E)(vi).
- 19
- 20 (5) The hearing must be continued for no more than five court days for the
- 21 submission of additional information as ordered by the court, if the court
- 22 determines that the report, the Transitional Independent Living Plan, the
- 23 Transitional Independent Living Case Plan (TILCP) if required, or the 90-day
- 24 Transition Plan submitted by the social worker or probation officer do not
- 25 provide the information required by (c) and the court is unable to make the
- 26 findings and orders required by (d).
- 27

28 **(c) Reports**

- 29
- 30 (1) In addition to complying with all other statutory and rule requirements
- 31 applicable to the report prepared by the social worker or probation officer for
- 32 any hearing during which termination of the court's jurisdiction will be
- 33 considered, the report must include:
- 34
- 35 (A) Whether remaining under juvenile court jurisdiction is in the
- 36 nonminor's best interests and the facts supporting the conclusion
- 37 reached;
- 38
- 39 (B) The specific criteria in section 11403(b) met by the nonminor that
- 40 makes him or her eligible to remain under juvenile court jurisdiction as
- 41 a nonminor dependent defined in section 11400(v);
- 42

- 1 (C) For an Indian child to whom the Indian Child Welfare Act applies,
2 when and how the nonminor was provided with information about the
3 right to continue to be considered an Indian child for the purposes of
4 the ongoing application of the Indian Child Welfare Act to him or her
5 as a nonminor;
6
- 7 (D) Whether the nonminor has applied for and, if so, the status of any in-
8 progress application pending for title XVI Supplemental Security
9 Income benefits and whether remaining under juvenile court
10 jurisdiction until a final decision has been issued is in the nonminor's
11 best interests;
12
- 13 (E) Whether the nonminor has applied for and, if so, the status of any in-
14 progress application pending for Special Juvenile Immigration Status or
15 other applicable application for legal residency and whether an active
16 juvenile court case is required for that application;
17
- 18 (F) When and how the nonminor was provided with information about the
19 potential benefits of remaining under juvenile court jurisdiction as a
20 nonminor dependent, and the social worker's or probation officer's
21 assessment of the nonminor's understanding of those benefits;
22
- 23 (G) When and how the nonminor was informed that if juvenile court
24 jurisdiction is terminated with the court retaining general jurisdiction
25 for the purpose of resuming jurisdiction, he or she has the right to file a
26 request to return to foster care and have the juvenile court resume
27 jurisdiction over him or her as a nonminor dependent until he or she has
28 attained the age of 21 years or the age of 20 years if the Legislature
29 does not appropriate funding to extend the availability of foster care
30 placement to the age of 21 years;
31
- 32 (H) When and how the nonminor was informed that if juvenile court
33 jurisdiction is continued over him or her, he or she has the right to have
34 juvenile court jurisdiction terminated;
35
- 36 (I) For a nonminor who is not present for the hearing:
37
- 38 (i) Documentation of the nonminor's statement that the he or she did
39 not wish to appear in court for the scheduled hearing; or
40
- 41 (ii) Documentation of the reasonable efforts made to locate the
42 nonminor when his or her current location is unknown;
43

- 1 (J) Verification that the nonminor was provided with the information,
2 documents, and services as required under section 391(e)(1)–(8); and
3
4 (K) Verification for a nonminor who is under delinquency jurisdiction that
5 the notices and information required under section 607.5 were
6 provided.
7
8 (2) The social worker or probation officer must file with the report a completed
9 Termination of Juvenile Court Jurisdiction—Nonminor (form JV-365).
10
11 (3) The social worker or probation officer must file with the report the
12 nonminor’s:
13
14 (A) Transitional Independent Living Case Plan when recommending
15 continuation of juvenile court jurisdiction;
16
17 (B) Most recent Transitional Independent Living Plan (TILP); and
18
19 (C) Completed 90-day Transition Plan.
20
21 (4) The social worker or probation officer’s report and all documents required by
22 (c)(2)–(3) must be filed with the court at least 10 calendar days before the
23 hearing, and the social worker or probation officer must provide copies of the
24 report and other documents to the nonminor, the nonminor’s parents, and all
25 attorneys of record. If the nonminor is under juvenile court jurisdiction as a
26 nonminor dependent, the social worker or probation officer is not required to
27 provide copies of the report and other documents to the nonminor
28 dependent’s parents.
29

30 **(d) Findings and orders**
31

32 In addition to complying with all other statutory and rule requirements applicable
33 to the hearing, the following judicial findings and orders must be made on the
34 record and included in the written, signed court documentation of the hearing:
35

36 (1) Findings
37

- 38 (A) Whether the nonminor had the opportunity to confer with his or her
39 attorney about the issues currently before the court;
40
41 (B) Whether remaining under juvenile court jurisdiction is in the
42 nonminor’s best interests and the facts in support of the finding made;
43

- 1 (C) Whether the nonminor meets the eligibility criteria in section 11403(b)
2 to remain in foster care as a nonminor dependent under juvenile court
3 jurisdiction and, if so, the specific criteria in section 11403(b) met by
4 the nonminor;
5
- 6 (D) For an Indian child to whom the Indian Child Welfare Act applies,
7 whether the nonminor was provided with information about the right to
8 continue to be considered an Indian child for the purposes of the
9 ongoing application of the Indian Child Welfare Act to him or her;
10
- 11 (E) Whether the nonminor has an in-progress application pending for title
12 XVI Supplemental Security Income benefits and, if such an application
13 is pending, whether it is in the nonminor's best interests to continue
14 juvenile court jurisdiction until a final decision has been issued to
15 ensure that the nonminor receives continued assistance with the
16 application process;
17
- 18 (F) Whether the nonminor has an in-progress application pending for
19 Special Juvenile Immigration Status or other applicable application for
20 legal residency and whether an active juvenile court case is required for
21 that application;
22
- 23 (G) Whether the nonminor understands the potential benefits of remaining
24 in foster care under juvenile court jurisdiction;
25
- 26 (H) Whether the nonminor has been informed that if juvenile court
27 jurisdiction is continued, he or she may have the right to have juvenile
28 court jurisdiction terminated with the court retaining general
29 jurisdiction for the purpose of resuming dependency jurisdiction or
30 assuming or resuming transition jurisdiction over him or her as a
31 nonminor dependent;
32
- 33 (I) Whether the nonminor has been informed that if juvenile court
34 jurisdiction is terminated with the court retaining general jurisdiction,
35 he or she has the right to file a request to return to foster care and have
36 the juvenile court resume jurisdiction over him or her as a nonminor
37 dependent until he or she has attained the age of 21 years or the age of
38 20 years if the Legislature does not appropriate funding to extend the
39 availability of nonminor foster care placement to the age of 21 years;
40
- 41 (J) Whether the nonminor was provided with the information, documents,
42 and services as required under section 391(e) and, if not, whether

juvenile court jurisdiction should be continued to ensure that all information, documents, and services are provided;

(K) Whether verification was submitted that the requirements of section 607.5 have been completed for a nonminor who is subject to delinquency jurisdiction; and

(L) Whether the nonminor's:

(i) Transitional Independent Living Case Plan, if required, includes a plan for a placement the nonminor believes is consistent with his or her need to gain independence, reflects the agreements made between the nonminor and social worker or probation officer to obtain independent living skills, and sets out the benchmarks that indicate how both will know when independence can be achieved;

(ii) Transitional Independent Living Plan identifies the nonminor's level of functioning, emancipation goals, and the specific skills he or she needs to prepare to live independently upon leaving foster care; and

(iii) 90-day Transition Plan is a concrete individualized plan that specifically covers the following areas: housing, health insurance, education, local opportunities for mentors and continuing support services, workforce supports and employment services, and information that explains how and why to designate a power of attorney for health care.

(M) For a nonminor who is not present for the hearing, whether the reason for his or her failure to appear was:

(i) The nonminor's expressed wish to not appear in court for the scheduled hearing; or

(ii) The nonminor's current location remains unknown although reasonable efforts were made to locate the nonminor.

(2) Orders

(A) Order the continuation of juvenile court jurisdiction for a nonminor who meets the eligibility criteria in section 11403(b) to remain in placement under dependency jurisdiction as a nonminor dependent or

1 under transition jurisdiction as a nonminor dependent, unless the court
2 finds that:

3
4 (i) The nonminor does not wish to remain under juvenile court
5 jurisdiction as a nonminor dependent;

6
7 (ii) The nonminor is not participating in a reasonable and
8 appropriate Transitional Independent Living Case Plan; or

9
10 (iii) Reasonable efforts were made to locate the nonminor whose
11 current location is unknown.

12
13 (B) When juvenile court jurisdiction is continued for the nonminor to
14 remain in placement as a nonminor dependent:

15
16 (i) Order a permanent plan consistent with the nonminor's
17 Transitional Independent Living Plan or Transitional Independent
18 Living Case Plan;

19
20 (ii) Continue the nonminor's status as an Indian child for the
21 purposes of the ongoing application of the Indian Child Welfare
22 Act to him or her unless he or she has elected not to have his or
23 her status as an Indian child continued; and

24
25 (iii) Set a status review hearing under rule 5.903 within six months of
26 the date of his or her most recent status review hearing.

27
28 (C) For a nonminor who does not meet and does not intend to meet the
29 eligibility requirements for nonminor dependent status but who is
30 otherwise eligible to and will remain under juvenile court's jurisdiction
31 in a foster care placement, the court must set a hearing under section
32 366.21, 366. 2, 366.25, 366.3, 727.2, or 727.3 within six months of the
33 date of the nonminor's most recent status review hearing.

34
35 (D) For a nonminor whose current location is unknown the court may enter
36 an order for termination of juvenile court jurisdiction only after finding
37 that reasonable efforts were made to locate the nonminor whose current
38 location is unknown;

39
40 (E) For a nonminor (1) who does not meet the eligibility criteria of section
41 11403(b) and is not otherwise eligible to remain under juvenile court
42 jurisdiction, (2) who does meet the eligibility criteria of section
43 11403(b) but does not wish to remain under the jurisdiction of the

1 juvenile court as a nonminor dependent, or (3) who does meet the
2 eligibility criteria of section 11403(b) but is not participating in a
3 reasonable and appropriate Transitional Independent Living Case Plan,
4 the court may enter an order for the termination of juvenile court
5 jurisdiction only after entering the following findings and orders:
6

7 (i) The nonminor was provided with the information, documents,
8 and services as required under section 391(e);
9

10 (ii) The nonminor was informed of the options available to him or
11 her to assist with the transition from foster care to independence;
12

13 (iii) The nonminor was informed that if juvenile court jurisdiction is
14 terminated, he or she has the right to return to foster care and to
15 file a request to have the juvenile court resume jurisdiction over
16 him or her as a nonminor dependent until he or she has attained
17 the age of 21 years or the age of 20 years if the Legislature does
18 not appropriate funding to extend the availability of nonminor
19 foster care placement to the age of 21 years;
20

21 (iv) The nonminor was provided with a copy of *How to Return to*
22 *Juvenile Court Jurisdiction and Foster Care* (form JV-464-
23 INFO), *Request to Return to Juvenile Court Jurisdiction and*
24 *Foster Care* (form JV-466), *Confidential Information—Request*
25 *to Return to Juvenile Court Jurisdiction and Foster Care* (form
26 JV-468), and an endorsed, filed copy of the *Termination of*
27 *Juvenile Court Jurisdiction—Nonminor* (form JV-365);
28

29 (v) The nonminor had an opportunity to confer with his or her
30 attorney regarding the issues currently before the court;
31

32 (vi) The nonminor's 90-day Transition Plan includes specific options
33 regarding housing, health insurance, education, local
34 opportunities for mentors and continuing support services,
35 workforce supports and employment services, and information
36 that explains how and why to designate a power of attorney for
37 health care;
38

39 (F) An order retaining general jurisdiction over the nonminor for the
40 purpose of considering a request filed under section 388(e) to resume
41 dependency jurisdiction or to assume or resume transition jurisdiction
42 over him or her as a nonminor dependent must be made when juvenile
43 court jurisdiction is terminated under this rule.

Rule 5.555 adopted effective January 1, 2012.

Rule 5.630. Restraining orders

(a) Court's authority (§ 213.5)

(Subd (a) amended effective January 1, 2012.)

(b) Application for restraining orders (§§ 213.5, 304)

(1) Application for restraining orders may be made orally at any scheduled hearing regarding the child who is the subject of a petition under section 300, 601, or 602, or may be made by written application, or may be made on the court's own motion.

(2) The written application must be submitted on *Application and Affidavit Request for Restraining Order—Juvenile* (form JV-245).

(3) A person requesting a restraining order in writing must submit to the court with the request a completed Confidential CLETS Information Form (form CLETS-001) under rule 1.51.

(Subd (b) amended effective January 1, 2012; previously amended effective January 1, 2003, January 1, 2004, and January 1, 2007.)

(c) Definition of abuse

The definition of abuse in Family Code section 6203 applies to restraining orders issued under Welfare and Institutions Code section 213.5.

(Subd (c) adopted effective January 1, 2012.)

~~(e) — Protected children (§ 213.5(a) and (b))~~

~~Restraining orders may be issued to protect any of the following children:~~

~~(1) — A child who is the subject of the dependency petition or who is declared a dependent;~~

~~(2) — Another child in the household of the child named in (1); and~~

1
2 ~~(3) — A child who is the subject of a delinquency petition or who is declared a~~
3 ~~ward.~~

4
5 ~~**(d) — Other protected persons (§ 213.5(a))**~~

6
7 ~~The court may also issue orders protecting any parent, legal guardian, or current~~
8 ~~caregiver of the child listed in (c)(1), whether or not that child resides with that~~
9 ~~parent, legal guardian, or current caregiver.~~

10
11 ~~**(e) — Available orders and restrained persons (§ 213.5(a), (b), and (d) (f))**~~

12
13 ~~The court may issue, either ex parte or after notice and hearing, restraining orders~~
14 ~~that:~~

15
16 ~~(1) — Enjoin any person from molesting, attacking, striking, sexually assaulting,~~
17 ~~stalking, or battering any of the persons listed in (c) or (d);~~

18
19 ~~(2) — Exclude any person from the dwelling of the person who has care, custody,~~
20 ~~and control of the child named in (c)(1) or (3). This order may be issued for~~
21 ~~the time and on the conditions that the court determines, regardless of which~~
22 ~~party holds legal or equitable title or is the lessee of the residence or~~
23 ~~dwelling, on a showing that:~~

24
25 ~~(A) — The party who will stay in the dwelling has a right under color of law to~~
26 ~~possession of the premises;~~

27
28 ~~(B) — The party to be excluded has assaulted or threatened to assault the other~~
29 ~~party or any other person under the care, custody, and control of the~~
30 ~~other party, or any minor child of the parties or of the other party; and~~

31
32 ~~(C) — Physical or emotional harm would otherwise result to the other party, to~~
33 ~~any person under the care, custody, and control of the other party, or to~~
34 ~~any minor child of the parties or of the other party;~~

35
36 ~~(3) — Enjoin any person from behavior, including contacting, threatening, or~~
37 ~~disturbing the peace of the persons named in (c) or (d), as necessary to~~
38 ~~effectuate orders under (e)(1) or (2); and~~

39
40 ~~(4) — Enjoin any delinquent child or any child for whom a section 601 or 602~~
41 ~~petition has been filed from contacting, threatening, stalking, or disturbing~~
42 ~~the peace of any person;~~

1 (A) ~~Whom the court finds to be at risk from the conduct of the child; or~~

2
3 (B) ~~With whom association would be detrimental to the child.~~

4
5 **(f)(d) Ex parte a Applications—procedure (§ 213.5(a) (c) and (f))**

6
7 The application may be submitted ~~ex parte~~ without notice, and the court may grant
8 the petition and issue a temporary order. ~~The matter may be heard simultaneously~~
9 ~~with any scheduled hearing regarding the child who is the subject of the section~~
10 ~~300, 601, or 602 petition. Notice of the ex parte proceeding is required as stated~~
11 ~~under rule 3.1204.~~

12
13 (1) In determining whether or not to issue the temporary restraining order ~~ex~~
14 ~~parte~~ without notice, the court must consider all documents submitted with
15 the application and may review the contents of the juvenile court file
16 regarding the child.

17
18 (2) The temporary restraining order must be prepared on *Restraining Order—*
19 *Juvenile (CLETS—JUV)* (form JV-250) and must state on its face the date of
20 expiration of the order.

21
22 *(Subd (d) amended and relettered effective January 1, 2012; adopted as subd (c);*
23 *previously amended and relettered as subd (f) effective January 1, 2003; previously*
24 *amended effective January 1, 2007.)*

25
26 **(g)(c) Order to show cause and reissuance (§ 213.5(e)) Reissuance**

27
28 ~~When a temporary restraining order is granted without notice, the matter must be~~
29 ~~made returnable on an order to show cause why the order should not be granted, no~~
30 ~~later than 15 days or, on a showing of good cause, 20 days from the date the~~
31 ~~temporary restraining order is granted.~~

32
33 (1) ~~On the motion of the person seeking the restraining order or on its own~~
34 ~~motion, the court may shorten the time for service of the order to show cause~~
35 ~~on the person to be restrained.~~

36
37 (2)(1) The court may, on its own motion or the filing of ~~an affidavit~~ a declaration by
38 the person seeking the restraining order, find that the person to be restrained
39 could not be served within the time required by the law and reissue an order
40 previously issued and dissolved by the court for failure to serve the person to
41 be restrained.

42
43 (2) The reissued order must state on its face the date of expiration of the order.

1
2 **(3)** *Application and Order for Reissuance of Order to Show Cause* (form FL-
3 306/JV-251) must be used for this purpose.

4
5 *(Subd (e) amended and relettered effective January 1, 2012; adopted as subd (g) effective*
6 *January 1, 2003; previously amended effective January 1, 2004, and January 1, 2007.)*

7
8 **(h)(f) Hearing on application for restraining order (§ 213.5(d) and (f))**

9
10 ~~The court may issue, after notice and hearing, any of the orders in (e). The~~
11 ~~restraining order must remain in effect for a period of time determined by the court,~~
12 ~~but in any case not more than three years.~~

13
14 ~~(1) — The matter may be heard simultaneously with any scheduled hearing~~
15 ~~regarding the child who is the subject of the section 300, 601, or 602 petition.~~

16
17 ~~(2)(1)~~ Proof may be by the application and any attachments, additional declarations
18 or documentary evidence, the contents of the juvenile court file, testimony, or
19 any combination of these.

20
21 ~~(3)(2)~~ The order after hearing must be prepared on *Restraining Order—Juvenile*
22 (*CLETS—JUV*) (form JV-250) and must state on its face the date of
23 expiration of the order.

24
25 *(Subd (f) amended and relettered effective January 1, 2012; adopted as subd (d);*
26 *previously amended and relettered as subd (h) effective January 1, 2003; previously*
27 *amended effective January 1, 2007.)*

28
29 **(g) Service of restraining order**

30
31 When service of *Restraining Order—Juvenile* (form JV-250) is made, it must be
32 served with *Proof of Firearms Turned In or Sold* (form DV-800/JV-252) and *How*
33 *Do I Turn In or Sell Firearms?* (form DV-800-INFO/JV-252-INFO). Failure to
34 serve form JV-252 or JV-252-INFO does not make service of form JV-250 invalid.

35
36 *(Subd (g) adopted effective January 1, 2012.)*

37
38 **(h) Expiration of restraining order**

39
40 If the juvenile case is dismissed, the restraining order remains in effect until it
41 expires or is terminated.

42
43 *(Subd (h) adopted effective January 1, 2012.)*

1
2 **(i) Criminal records search (§ 213.5(k) and Stats. 2001, ch. 572, § 7)**

3
4 ***

5
6 *(Subd (i) amended effective January 1, 2012; adopted effective January 1, 2003;*
7 *previously amended effective January 1, 2007.)*
8

9 ~~**(j) Termination or extension of restraining order (§ 213.5(d))**~~

10
11 ~~(1) The restraining order may be terminated by the court before the expiration~~
12 ~~date listed on its face.~~

13
14 ~~(2) The restraining order may be extended beyond the expiration date listed on~~
15 ~~its face by mutual consent of all parties to the order, or by further order of the~~
16 ~~court on motion of any party to the order.~~

17
18 **(j) Modification of restraining order**

19
20 (1) A restraining order may be modified on the court's own motion or in the
21 manner provided for in Welfare and Institutions Code section 388 and rule
22 5.560.

23
24 (2) A termination or modification order must be made on *Change to Restraining*
25 *Order After Hearing* (form JV-255).

26
27 *(Subd (j) adopted effective January 1, 2012.)*
28

29 ~~**(k) Violation (§ 213.5(h))**~~

30
31 ~~Any willful and knowing violation of any order, temporary order, or order after~~
32 ~~hearing granted under section 213.5 is a misdemeanor, punishable under Penal~~
33 ~~Code section 273.65.~~

34
35 ~~**(k)**~~ **(k) Restraining orders issued by other courts (§ 304)**

36
37 (1) If a A restraining order has been issued by the juvenile court under section
38 213.5, no court other than a criminal court may issue any order contrary to
39 the juvenile court's restraining order. takes precedence over any other court
40 order except the following:

41
42 (A) A conflicting criminal court order; or
43

1 (B) An Emergency Protective Order that is more restrictive than the
2 juvenile court order.

3
4 *(Subd (k) amended and relettered effective January 1, 2012; adopted as subd (l) effective*
5 *January 1, 2003; previously amended effective January 1, 2007.)*

6
7 *Rule 5.630 amended effective January 1, 2012; adopted as rule 1429.5 effective January 1, 2000;*
8 *previously amended effective January 1, 2003, and January 1, 2004; amended and renumbered*
9 *effective January 1, 2007.*

10
11
12 **Rule 5.645. Mental health or condition of child; court procedures**

13
14 **(a)–(c)*****

15
16 **(d) Doubt as to capacity to cooperate with counsel (§§ 601, 602; Pen. Code, § 1367)**

17
18 (1) If the court finds that there is ~~reason to doubt~~ substantial evidence that a child
19 who is the subject of a petition filed under section 601 or 602 ~~is capable of~~
20 ~~understanding the proceedings or of cooperating with the child's attorney,~~
21 lacks sufficient present ability to consult with counsel and assist in preparing
22 his or her defense with a reasonable degree of rational understanding, or lacks
23 a rational as well as factual understanding of the nature of the charges or
24 proceedings against him or her, the court must stay suspend the proceedings
25 and conduct a hearing regarding the child's competence. Evidence is
26 substantial if it raises a reasonable doubt about the child's competence to
27 stand trial.

28
29 ~~(1)(A)~~ (A) The court ~~may~~ must appoint an expert to examine the child to
30 evaluate the child's capacity to understand the proceedings and to
31 cooperate with the attorney whether the child suffers from a mental
32 disorder, developmental disability, developmental immaturity, or other
33 condition and, if so, whether the condition or conditions impair the
34 child's competency.

35
36 (B) To be appointed as an expert, an individual must be a:

37
38 (i) Licensed psychiatrist who has successfully completed four years
39 of medical school and either four years of general psychiatry
40 residency, including one year of internship and two years of child
41 and adolescent fellowship training, or three years of general
42 psychiatry residency, including one year of internship and one

1 year of residency that focus on children and adolescents and one
2 year of child and adolescent fellowship training; or

3
4 (ii) Clinical, counseling, or school psychologist who has received a
5 doctoral degree in psychology from an educational institution
6 accredited by an organization recognized by the Council for
7 Higher Education Accreditation and who is licensed as a
8 psychologist.

9
10 (C) The expert, whether a licensed psychiatrist or psychologist, must:

11
12 (i) Possess demonstrable professional experience addressing child
13 and adolescent developmental issues, including the emotional,
14 behavioral, and cognitive impairments of children and
15 adolescents;

16
17 (ii) Have expertise in the cultural and social characteristics of
18 children and adolescents;

19
20 (iii) Possess a curriculum vitae reflecting training and experience in
21 the forensic evaluation of children;

22
23 (iv) Be familiar with juvenile competency standards and accepted
24 criteria used in evaluating juvenile competence;

25
26 (v) Possess a comprehensive understanding of effective interventions
27 as well as treatment, training, and programs for the attainment of
28 competency available to children and adolescents; and

29
30 (vi) Be proficient in the language preferred by the child, or if that is
31 not feasible, employ the services of a certified interpreter and use
32 assessment tools that are linguistically and culturally appropriate
33 for the child.

34
35 (2) ~~If the court finds that the child is not capable of understanding the~~
36 ~~proceedings or of cooperating with the attorney, the court must proceed under~~
37 ~~section 6550 and (a)–(c) of this rule. Nothing in this rule precludes~~
38 ~~involvement of clinicians with other professional qualifications from~~
39 ~~participation as consultants or witnesses or in other capacities relevant to the~~
40 ~~case.~~

41
42 (3) ~~If the court finds that the child is capable of understanding the proceedings~~
43 ~~and of cooperating with the attorney, the court must proceed with the case.~~

1 Following the hearing on competence, the court must proceed as directed in
2 section 709.

3
4 *(Subd (d) amended effective January 1, 2012; previously amended effective January 1,*
5 *2007.)*

6
7 *Rule 5.645 amended effective January 1, 2012; adopted as rule 1498 effective January 1, 1999;*
8 *previously amended and renumbered effective January 1, 2007; previously amended effective*
9 *January 1, 2009.*

10
11 **Advisory Committee Comment**

12
13 Welfare and Institutions Code section 709(b) mandates that the Judicial Council develop and
14 adopt rules regarding the qualification of experts to determine competency for purposes of
15 juvenile adjudication. Upon a court finding of incompetency based on a developmental disability,
16 the regional center determines eligibility for services under Division 4.5 of the Lanterman
17 Developmental Disabilities Services (Welf. & Inst. Code, § 4500 et seq.).

18
19
20 **Rule 5.707. Review hearing requirements for child approaching majority (§§ 224.1,**
21 **366(a)(1)(F), 366.3(l), 366.3(n), 16501.1(f)(16))**

22
23 **(a) Reports**

24
25 At the last review hearing before the child attains 18 years of age held under
26 section 366.21, 366.22, 366.25, or 366.3, in addition to complying with all other
27 statutory and rule requirements applicable to the report prepared by the social
28 worker for the hearing, the report must include a description of:

- 29
30 (1) The child's plans to remain under juvenile court jurisdiction as a nonminor
31 dependent including the criteria in section 11403(b) that he or she plans to
32 meet;
33
34 (2) The efforts made by the social worker to help the child meet the criteria in
35 section 11403(b);
36
37 (3) For an Indian child to whom the Indian Child Welfare Act applies, his or her
38 plans to continue to be considered an Indian child for the purposes of the
39 ongoing application of the Indian Child Welfare Act to him or her as a
40 nonminor dependent;
41
42 (4) Whether the child has applied for and, if so, the status of any in-progress
43 application pending for title XVI Supplemental Security Income benefits and,

1 if such an application is pending, whether it will be the child's best interest to
2 continue juvenile court jurisdiction until a final decision is issued to ensure
3 that the child receives continued assistance with the application process;
4

5 (5) Whether the child has an in-progress application pending for Special Juvenile
6 Immigration Status or other applicable application for legal residency and
7 whether an active dependency case is required for that application;
8

9 (6) The efforts made by the social worker toward providing the child with the
10 written information described in section 391(e)(1), and to the extent that the
11 child has not yet been provided with the information, the barriers to providing
12 that information, and the steps that will be taken to overcome those barriers
13 by the date the child attains 18 years of age;
14

15 (7) The efforts made by the social worker toward completing and providing the
16 child with the documents and services described in section 391(e)(2), and to
17 the extent that the child has not yet been provided with them, the barriers to
18 providing documents and services, and the steps that will be taken to
19 overcome those barriers by the date the child attains 18 years of age;
20

21 (8) When and how the child was informed of his or her right to have juvenile
22 court jurisdiction terminated when he or she attains 18 years of age;
23

24 (9) When and how the child was provided with information about the potential
25 benefits of remaining under juvenile court jurisdiction as a nonminor
26 dependent and the social worker's assessment of the child's understanding of
27 those benefits; and
28

29 (10) When and how the child was informed that if juvenile court jurisdiction is
30 terminated, he or she has the right to file a request to return to foster care and
31 have the juvenile court resume jurisdiction over him or her as a nonminor
32 dependent.
33

34 **(b) Transitional Independent Living Case Plan**
35

36 At the last review hearing before the child attains 18 years of age held under
37 section 366.21, 366.22, 366.25, or 366.3, the child's Transitional Independent
38 Living Case Plan:
39

40 (1) Must be submitted with the social worker's report prepared for the hearing at
41 least 10 calendar days before the hearing; and
42

43 (2) Must include:

- 1
- 2 (A) The individualized plan for the child to satisfy one or more of the
- 3 criteria in section 11403(b) and the child's anticipated placement as
- 4 specified in section 11402; and
- 5
- 6 (B) The child's alternate plan for his or her transition to independence,
- 7 including housing, education, employment, and a support system in the
- 8 event the child does not remain under juvenile court jurisdiction after
- 9 attaining 18 years of age.
- 10

11 (c) **Findings**

12

- 13 (1) At the last review hearing before the child attains 18 years of age held under
- 14 section 366.21, 366.22, 366.25, or 366.3, in addition to complying with all
- 15 other statutory and rule requirements applicable to the hearing, the court must
- 16 find on the record and in the written, signed orders:
- 17
- 18 (A) Whether the child's Transitional Independent Living Case Plan
- 19 includes a plan for the child to satisfy one or more of the criteria in
- 20 section 11403(b) and the specific criteria it is anticipated the child will
- 21 satisfy;
- 22
- 23 (B) Whether there is included in the child's Transitional Independent
- 24 Living Case Plan an alternative plan for the child's transition to
- 25 independence, including housing, education, employment, and a
- 26 support system in the event the child does not remain under juvenile
- 27 court jurisdiction after attaining 18 years of age;
- 28
- 29 (C) For an Indian child to whom the Indian Child Welfare Act applies,
- 30 whether he or she intends to continue to be considered an Indian child
- 31 for the purposes of the ongoing application of the Indian Child Welfare
- 32 Act to him or her as a nonminor dependent;
- 33
- 34 (D) Whether the child has an in-progress application pending for title XVI
- 35 Supplemental Security Income benefits and, if such an application is
- 36 pending, whether it is in the child's best interest to continue juvenile
- 37 court jurisdiction until a final decision has been issued to ensure that
- 38 the child receives continued assistance with the application process;
- 39
- 40 (E) Whether the child has an in-progress application pending for Special
- 41 Juvenile Immigration Status or other applicable application for legal
- 42 residency and whether an active dependency case is required for that
- 43 application;

1
2 (F) Whether all the information, documents, and services in sections 391(e)
3 were provided to the child, and

4
5 (i) Whether the barriers to providing any missing information,
6 documents, or services can be overcome by the date the child
7 attains 18 years of age; and

8
9 (ii) Whether juvenile court jurisdiction should be continued to ensure
10 that all information, documents, and services are provided to the
11 child if the barriers cannot be overcome by the date the child
12 attains 18 years of age;

13
14 (G) Whether the child has been informed of his or her right to have juvenile
15 court jurisdiction terminated when he or she attains 18 years of age;

16
17 (H) Whether the child understands the potential benefits of remaining under
18 juvenile court jurisdiction as a nonminor dependent; and

19
20 (I) Whether the child has been informed that if juvenile court jurisdiction
21 is terminated, he or she has the right to file a request to return to foster
22 care and have the juvenile court resume jurisdiction over him or her as
23 a nonminor dependent.

24
25 (2) The hearing must be continued for no more than five court days for the
26 submission of additional information as ordered by the court if the court finds
27 that the report and Transitional Independent Living Case Plan submitted by
28 the social worker do not provide the information required by (a) and (b) and
29 the court is unable to make all the findings required by (c)(1).

30
31 **(d) Orders**

32
33 (1) For a child who intends to remain under juvenile court jurisdiction as a
34 nonminor dependent, as defined in section 11400(v), after attaining 18 years
35 of age, the court must set a nonminor dependent review hearing under rule
36 5.903 within six months from the date of the current hearing.

37
38 (2) For a child who does not intend to remain under juvenile court as a nonminor
39 dependent, as defined in section 11400(v), after attaining 18 years of age, the
40 court must:

(A) Set a hearing under rule 5.555 for a date within one month after the child's 18th birthday, for the child who requests that the juvenile court terminate its jurisdiction after he or she attains 18 years of age; or

(B) Set a hearing under section 366.21, 366.22, 366.25, or 366.3 no more than six months from the date of the current hearing, for a child who will remain under juvenile court jurisdiction in a foster care placement.

Rule 5.707 adopted effective January 1, 2012.

Rule 5.740. Hearings subsequent to a permanent plan (§§ 366.26, 366.3, ~~391~~)

(a)–(c) ***

~~(d) — Hearings on termination of jurisdiction—child reaching age of majority (§ 391)~~

~~Petitioner must file *Termination of Dependency Jurisdiction—Child Attaining Age of Majority (Juvenile)* (form JV-365) with the court at least 10 calendar days before the hearing to terminate dependency jurisdiction based on the child's age and must provide copies to the child, the parents or guardians, any CASA volunteer, and all counsel of record at least 10 calendar days before the hearing.~~

Rule 5.740 amended effective January 1, 2012; adopted as rule 1465 effective January 1, 1991; previously renumbered as rule 1466 effective July 1, 1995; previously amended and renumbered effective January 1, 2007; previously amended effective January 1, 1992, January 1, 1993, January 1, 1994, July 1, 1994, January 1, 1998, January 1, 1999, July 1, 1999, July 1, 2002, January 1, 2005, January 1, 2006, and July 1, 2010.

Rule 5.812. Additional requirements for any hearing to terminate jurisdiction over child in foster care and for status review hearing for child approaching majority (§§ 450, 451, 727.2(i)–(j), 778)

(a) Hearings subject to this rule

The following hearings are subject to this rule:

(1) The last review hearing under section 727.2 or 727.3 before the child turns 18 years of age. This hearing must be set at least 90 days before the child attains his or her 18th birthday and within six months of the previous hearing held under section 727.2 or 727.3.

- 1 (2) Any review hearing held under section 727.2 or 727.3 for a child less than 18
2 years of age during which a recommendation to terminate juvenile court
3 jurisdiction will be considered;
4
- 5 (3) Any hearing to terminate juvenile court jurisdiction over a child less than 18
6 years of age who is subject to an order for foster care placement; and
7
- 8 (4) Any hearing to terminate juvenile court jurisdiction over a child less than 18
9 years of age who is not currently subject to an order for foster care
10 placement, but was previously removed from the custody of his or her parents
11 or legal guardian as a dependent of the juvenile court and an order for a foster
12 care placement as a dependent of the juvenile court was in effect at the time
13 the juvenile court adjudged the child to be a ward of the juvenile court under
14 section 725.
15

16 **(b) Conduct of the hearing**
17

- 18 (1) The hearing must be held before a judicial officer and recorded by a court
19 reporter.
20
- 21 (2) The hearing must be continued for no more than five court days for the
22 submission of additional information as ordered by the court if the court finds
23 that the report and, if required, the Transitional Independent Living Plan
24 submitted by the probation officer do not provide the information required by
25 (c) and the court is unable to make all the findings required by (d).
26

27 **(c) Reports**
28

- 29 (1) In addition to complying with all other statutory and rule requirements
30 applicable to the report prepared by the probation officer for a hearing
31 described in (a)(1)–(4), the report must include verification that the
32 requirements of section 607.5 have been completed and a description of:
33
- 34 (A) The child’s progress toward meeting the case plan goals that will
35 enable him or her to be a law-abiding and productive member of his or
36 her family and the community.
37
- 38 (B) If reunification services have not been previously terminated, the
39 progress of each parent or legal guardian toward participating in case
40 plan service activities and meeting the case plan goals developed to
41 assist in the efforts to resolve his or her issues that were identified and
42 contributed to the child’s removal from his or her custody.
43

1 (C) The current ability of each parent or legal guardian to provide the care,
2 custody, supervision, and support the child requires in a safe and
3 healthy environment.

4
5 (D) For a child previously determined to be a dual status child for whom
6 juvenile court jurisdiction as dependent was suspended under section
7 241.1(e)(5)(A), a joint assessment by the probation department and the
8 child welfare services agency under section 366.5 regarding the
9 detriment, if any, to the child of a return to the home of his or her
10 parents or legal guardian and a recommendation on the resumption of
11 dependency jurisdiction. The facts in support of the opinions expressed
12 and the recommendations made must be included in the joint
13 assessment section of the report. If the probation department and the
14 child welfare services agency do not agree, the child welfare services
15 agency must file a separate report with facts in support of its opinions
16 and recommendations.

17
18 (E) For a child previously determined to be a dual status child for whom
19 the probation department was designated the lead agency under section
20 241.1(e)(5)(B), the detriment, if any, to the child of a return to the
21 home of his or her parents or legal guardian and the probation officer's
22 recommendation regarding the modification of the court's jurisdiction
23 over the child from that of a dual status child to that of a child under
24 the court's jurisdiction as a dependent under section 300 and the facts
25 in support of the opinion expressed and the recommendation made.

26
27 (F) For a child other than a dual status child, the probation officer's
28 recommendation regarding the modification of the juvenile court's
29 jurisdiction over the child from that of a ward under section 601 or 602
30 to that of a dependent under section 300 or to that of a transition
31 dependent under section 450 and the facts in support of his or her
32 recommendation.

33
34 (2) For the review hearing held on behalf of a child approaching majority
35 described in (a)(1) and any hearing described in (a)(2) or (a)(3) held on
36 behalf of a child more than 17 years, 5 months old and less than 18 years of
37 age, in addition to complying with all other report requirements set forth in
38 (c)(1), the report prepared by the probation officer must include:

39
40 (A) The child's plans to remain under juvenile court jurisdiction as a
41 nonminor dependent including the criteria in section 11403(b) that he
42 or she plans to meet;
43

- 1 (B) The efforts made by the probation officer to help the child meet the
2 criteria in section 11403(b);
3
- 4 (C) For an Indian child, his or her plans to continue to be considered an
5 Indian child for the purposes of the ongoing application of the Indian
6 Child Welfare Act to him or her as a nonminor dependent;
7
- 8 (D) Whether the child has applied for and, if so, the status of any in-
9 progress application pending for title XVI Supplemental Security
10 Income benefits and, if such an application is pending, whether it is in
11 the child's best interest to continue juvenile court jurisdiction until a
12 final decision has been issued to ensure that the child receives
13 continued assistance with the application process;
14
- 15 (E) Whether the child has an in-progress application pending for Special
16 Juvenile Immigration Status or other applicable application for legal
17 residency and whether an active juvenile court case is required for that
18 application;
19
- 20 (F) The efforts made by the probation officer toward providing the child
21 with the written information described in section 391(e)(1), and to the
22 extent that the child has not yet been provided with the information, the
23 barriers to providing the information, and the steps that will be taken to
24 overcome those barriers by the date the child attains 18 years of age;
25
- 26 (G) The efforts made by the probation officer toward completing and
27 providing the child with the items described in section 391(e)(2), and to
28 the extent that the child has not yet been provided with each of the
29 documents and services, the barriers to providing those items, and the
30 steps that will be taken to overcome those barriers by the date the child
31 attains 18 years of age;
32
- 33 (H) When and how the child was informed that upon reaching 18 years of
34 age he or she may request the dismissal of juvenile court jurisdiction
35 over him or her under section 778;
36
- 37 (I) When and how the child was provided with information regarding the
38 potential benefits of remaining under juvenile court jurisdiction as a
39 nonminor dependent and the probation officer's assessment of the
40 child's understanding of those benefits;
41
- 42 (J) When and how the child was informed that if juvenile court jurisdiction
43 is terminated, he or she has the right to file a request to return to foster

1 care and have the juvenile court assume or resume transition
2 jurisdiction over him or her as a nonminor dependent; and

3
4 (K) The child's Transitional Independent Living Plan, which must include:

5
6 (i) The individualized plan for the child to satisfy one or more of the
7 criteria in section 11403(b) and the child's anticipated placement
8 as specified in section 11402; and

9
10 (ii) The child's alternate plan for his or her transition to
11 independence, including housing, education, employment, and a
12 support system in the event the child does not remain under
13 juvenile court jurisdiction after attaining 18 years of age.

14 **(d) Findings**

15
16 (1) At the hearing described in (a)(1)–(4), in addition to complying with all other
17 statutory and rule requirements applicable to the hearing, the court must find
18 on the record and in the written, signed orders:

19
20 (A) Whether the rehabilitative goals for this child have been met and
21 juvenile court jurisdiction over the child as a ward is no longer
22 required. The facts supporting the finding must be stated on the record.

23
24 (B) For a dual status child for whom dependency jurisdiction was
25 suspended under section 241.1(e)(5)(A) whether the return to the home
26 of the parent or legal guardian would be detrimental to the minor. The
27 facts supporting the finding must be stated on the record.

28
29 (C) For a child previously determined to be a dual status child for whom
30 the probation department was designated the lead agency under section
31 241.1(e)(5)(B), whether the return to the home of the parent or legal
32 guardian would be detrimental to the minor. The facts supporting the
33 finding must be stated on the record.

34
35 (D) For a child other than a dual status child:

36
37 (i) Whether the child is at risk of abuse or neglect. The facts
38 supporting the finding must be stated on the record;

39
40 (ii) Whether the return to the home of the parent or legal guardian
41 would create a substantial risk of detriment to the child's safety,
42 protection, or physical or emotional well-being. The facts
43 supporting the finding must be stated on the record

1
2 (iii) Whether reunification services have been terminated;

3
4 (iv) Whether the matter has been set for a hearing to terminate
5 parental rights or establish a guardianship; and

6
7 (v) Whether the minor intends to sign a mutual agreement for a
8 placement in a supervised setting as a nonminor dependent.

9
10 (2) At the review hearing held on behalf of a child approaching majority
11 described in (a)(1) and any hearing under (a)(2) or (a)(3) held on behalf of a
12 child more than 17 years, 5 months old and less than 18 years of age, in
13 addition to complying with all other statutory and rule requirements
14 applicable to the hearing, the court must find on the record and in the written,
15 signed orders:

16
17 (A) Whether the child's Transitional Independent Living Case Plan, if
18 required, or Transitional Independent Living Plan, includes:

19
20 (i) A plan specific to the child for him or her to satisfy one or more
21 of the criteria in section 11403(b) and the specific criteria in
22 section 11403(b) it is anticipated the child will satisfy; and

23
24 (ii) The child's alternate plan for his or her transition to
25 independence, including, housing, education, employment, and a
26 support system, in the event the child does not remain under
27 juvenile court jurisdiction after attaining 18 years of age.

28
29 (B) For an Indian child to whom the Indian Child Welfare Act applies,
30 whether he or she intends to continue to be considered an Indian child
31 for the purposes of the ongoing application of the Indian Child Welfare
32 Act to him or her as a nonminor dependent;

33
34 (C) Whether the child has an in-progress application pending for title XVI
35 Supplemental Security Income benefits and, if such an application is
36 pending, whether it is in the child's best interest to continue juvenile
37 court jurisdiction until a final decision has been issued to ensure that
38 the child receives continued assistance with the application process;

39
40 (D) Whether the child has an in-progress application pending for Special
41 Juvenile Immigration Status or other applicable application for legal
42 residency and an active juvenile court case is required for that
43 application;

- 1
2 (E) Whether the child has been informed that he or she may decline to
3 become a nonminor dependent;
4
5 (F) Whether the child has been informed that upon reaching 18 years of
6 age he or she may request the dismissal of juvenile court jurisdiction
7 over him or her under section 778;
8
9 (G) Whether the child understands the potential benefits of remaining under
10 juvenile court jurisdiction as a nonminor dependent; and
11
12 (H) Whether the child has been informed that if juvenile court jurisdiction
13 is terminated, he or she has the right to file a request to return to foster
14 care and have the juvenile court assume or resume transition
15 jurisdiction over him or her as a nonminor dependent;
16
17 (I) Whether all the information, documents, and services in sections 391(e)
18 were provided to the child, and
19
20 (i) Whether the barriers to providing any missing information,
21 documents or services can be overcome by the date the child
22 attains 18 years of age; and
23
24 (ii) Whether juvenile court jurisdiction should be continued to ensure
25 that all information, documents, and services are provided to the
26 child if the barriers cannot be overcome by the child attains 18
27 years of ages; and
28
29 (J) Whether verification was submitted that the notices and information
30 required under section 607.5 were provided to a child who is or was
31 subject to an order for foster care placement.
32

33 **(e) Orders**
34

- 35 (1) For a child previously determined to be a dual status child for whom
36 dependency jurisdiction was suspended under section 241.1(e)(5)(A),
37 dependency jurisdiction must be resumed if the court finds that the child's
38 rehabilitative goals have been achieved and a return to the home of the parent
39 or legal guardian would be detrimental to the child.
40
41 (2) For a child previously determined to be a dual status child for whom the
42 probation department was designated the lead agency under section
43 241.1(e)(5)(B), the court must terminate dual status, dismiss delinquency

jurisdiction and continue dependency jurisdiction with the child welfare services department responsible for the child's placement if the court finds that the child's rehabilitative have been achieved and a return to the home of the parent or legal guardian would be detrimental to the child.

(3) For a child who comes within the description of section 450(a), other than a child described in (e)(1) or (e)(2), the court must enter an order modifying its jurisdiction over him or her from delinquency jurisdiction to transition jurisdiction and set a nonminor dependent status review hearing under rule 5.903 within six months of the last hearing held under section 727.2.

(4) For a child who was not subject to the court's dependency jurisdiction at the time he or she was adjudged a ward and is currently subject to an order for a foster care placement the court must:

(A) Order the probation department or the child's attorney to submit an application, under section 329, to the county child welfare services department to commence a proceeding to declare the child a dependent of the court by filing a petition under section 300 if the court finds:

(i) The child does not come within the description of section 450(a);

(ii) The rehabilitative goals for the child included in his or her case plan have been met and delinquency jurisdiction is no longer required; and

(iii) The child appears to come within the description of section 300 and a return to the home of the parent or legal guardian may be detrimental to his or her safety, protection, or physical or emotional well-being.

(B) Set a hearing to review the county child welfare services department's decision within 20 court days of the date the order to file an application under section 329 was entered and at that hearing:

(i) Affirm the county child welfare services department's decision not to file a petition under section 300; or

(ii) Order the county child welfare services department to file a petition under section 300.

(C) If the court affirms the decision not to file a petition under section 300 or a petition filed under section 300 is not sustained, the court may:

- 1
- 2 (i) Return the child to the home of the parent or legal guardian and
- 3 set a progress report hearing within the next six months;
- 4
- 5 (ii) Return the child to the home of the parent or legal guardian and
- 6 terminate juvenile court jurisdiction over the child; or
- 7
- 8 (iii) Continue the child's foster care placement and set a hearing
- 9 under section 727.2 no more than six months from the date of the
- 10 most recent hearing held under 727.2.
- 11
- 12 (5) For a child who was subject to an order for foster care placement as a
- 13 dependent of the court at the time he or she was adjudged a ward, the court
- 14 must modify its delinquency jurisdiction over the child by vacating the order
- 15 terminating jurisdiction over the child as a dependent of the court and
- 16 resuming dependency jurisdiction over him or her if the court finds:
- 17
- 18 (A) The child does not come within the description of section 450(a);
- 19
- 20 (B) The rehabilitative goals for the child included in his or her case plan
- 21 have been met and delinquency jurisdiction may not be required; and
- 22
- 23 (C) The child remains within the description of a dependent child under
- 24 section 300 and a return to the home of a parent or legal guardian
- 25 would create a substantial risk of detriment to his or her safety,
- 26 protection, or physical or emotional well-being.
- 27
- 28 (6) At a hearing described in (a)(1) for a child approaching majority or at any
- 29 hearing described in (a)(2) or (a)(3) held on behalf of a child more than 17
- 30 years, 5 months old and less than 18 years of age that did not result in
- 31 modification of jurisdiction over the child from delinquency jurisdiction to
- 32 dependency jurisdiction or transition jurisdiction, the court must:
- 33
- 34 (A) Return the child to the home of the parent or legal guardian and set a
- 35 progress report hearing within the next six months; or
- 36
- 37 (B) Return the child to the home of the parent or legal guardian and
- 38 terminate juvenile court jurisdiction over the child; or
- 39
- 40 (C) Continue the child's foster care placement and:
- 41
- 42 (i) For the child who intends to meet the eligibility requirements for
- 43 status as a nonminor dependent after attaining 18 years of age,

- 1 the court must set a nonminor dependent review hearing under
2 rule 5.903 no more than six months from the most recent hearing
3 held under section 727.2; or
4
- 5 (ii) For the child who does not intend to meet the eligibility
6 requirements for nonminor dependent status after attaining 18
7 years of age, the court must:
8
- 9 a. Set a hearing to terminate delinquency jurisdiction under
10 section 607.2(b)(4) and section 607.3 for a date within one
11 month after the child's 18th birthday; or
12
- 13 b. Set a hearing under section 727.2 no more than six months
14 from the date of the most recent hearing held under section
15 727.2 for the child who will remain under delinquency
16 jurisdiction in a foster care placement.
17
- 18 (7) At any hearing under (a)(2) or (a)(3) held on behalf of a child 17 years, 5
19 months old or less that did not result in modification of jurisdiction over the
20 child from delinquency jurisdiction to dependency jurisdiction, the court
21 must:
22
- 23 (A) Return the child to the home of the parent or legal guardian and set a
24 progress report hearing within the next six months;
25
- 26 (B) Return the child to the home of the parent or legal guardian and
27 terminate juvenile court jurisdiction over the child; or
28
- 29 (C) Continue the child's out-of-home placement and set a hearing under
30 section 727.2 to occur within six months of the most recent hearing
31 under section 727.2.
32
- 33 (8) At any hearing under (a)(4) on behalf of a child less than 18 years of age that
34 did not result in modification of jurisdiction over the child from delinquency
35 jurisdiction to dependency jurisdiction, the court must:
36
- 37 (A) Return the child to the home of the parent or legal guardian and set a
38 progress report hearing within the next six months;
39
- 40 (B) Return the child to the home of the parent or legal guardian and
41 terminate juvenile court jurisdiction over the child; or
42

(C) Continue the child’s out-of-home placement and set a progress report hearing within the next six months.

(f) Modification of jurisdiction—conditions

Whenever the court modifies its jurisdiction over a dependent or ward under section 241.1, 607.2, or 727.2, the court must ensure that all of the following conditions are met:

(1) The petition under which jurisdiction was taken at the time the dependent or ward was originally removed from his or her parents or legal guardian and placed in foster care is not dismissed until after the new petition is sustained; and

(2) The order modifying the court’s jurisdiction contains all of the following provisions:

(A) A reference to the original removal findings, the date those findings were made, and a statement that the finding, “continuation in the home is contrary to the child’s welfare,” and the finding, “reasonable efforts were made to prevent removal,” made at that hearing remain in effect;

(B) A statement that the child continues to be removed from the parents or legal guardian from whom the child was removed under the original petition; and

(C) Identification of the agency that is responsible for placement and care of the child based upon the modification of jurisdiction.

Rule 5.812 adopted effective January 1, 2012.

Chapter 14. Nonminor Dependent

Title 5, Family and Juvenile Rules—Division 3, Juvenile rules—Chapter 14, Nonminor Dependent; adopted effective January 1, 2012.

Rule 5.900. Nonminor dependent—preliminary provisions (§§ 224.1(b), 295, 303, 366, 366.3, 388, 391, 607(a))

(a) Applicability

- 1 (1) The provisions of this chapter apply to nonminor dependents as defined in
2 section 11400(v).
- 3
- 4 (2) Nothing in the Welfare and Institutions Code or in the California Rules of
5 Court restricts the ability of the juvenile court to maintain dependency
6 jurisdiction or delinquency jurisdiction over a person, 18 years of age and
7 older, who does not meet the eligibility requirements for status as a nonminor
8 dependent and to proceed as to that person under the relevant sections of the
9 Welfare and Institutions Code and California Rules of Court.

10

11 **(b) Purpose**

12

13 Maintaining juvenile court jurisdiction under section 300,450, 601, or 602 over a
14 person as a nonminor dependent is the result of a consensual agreement between
15 the person and child welfare services agency or the probation department for a
16 voluntary placement in a supervised setting and includes the agreement between the
17 social worker or probation officer and the person to work together to facilitate the
18 implementation of the mutually developed supervised placement agreement or
19 reentry agreement and Transitional Independent Living Case Plan. Maintaining
20 juvenile court jurisdiction and supervision by the child welfare services agency or
21 probation department is for the purpose of providing support, guidance, and foster
22 care services to the person as a nonminor dependent so he or she is able to
23 successfully achieve independence.

24

25 **(c) Legal status**

26

- 27 (1) Nothing in the Welfare and Institutions Code, including sections 340, 366.2,
28 and 369.5, or in the California Rules of Court provides legal custody of a
29 nonminor dependent to the child welfare services agency or the probation
30 department or abrogates any right the nonminor dependent, as a person who
31 has attained 18 years of age, may have as an adult under California law.
- 32
- 33 (2) A nonminor dependent retains all his or her legal decision-making authority
34 as an adult.
- 35

36 **(d) Conduct of hearings**

37

- 38 (1) All hearings involving a person who is a nonminor dependent must be
39 conducted in a manner that respects the person's legal status as an adult.
- 40
- 41 (2) Unless there is a contested issue of fact or law, the hearings must be informal
42 and nonadversarial and all parties must work collaboratively with the

1 nonminor dependent as he or she moves toward the achievement of his or her
2 Transitional Independent Living Case Plan goals.

- 3
4 (3) The nonminor dependent may designate his or her attorney to appear on his
5 or her behalf at a hearing under this chapter.

6
7 **(e) Telephone appearance**

- 8
9 (1) The person who is the subject of the hearing may appear, at his or her
10 request, by telephone at a hearing to terminate juvenile court jurisdiction held
11 under rule 5.555, a status review hearing under rule 5.903, or a hearing on a
12 request to have juvenile court jurisdiction resumed held under rule 5.906.
13 Rule 5.531 applies to telephone appearances under this paragraph.

- 14
15 (2) The court may require the nonminor dependent or the person requesting to
16 return to juvenile court jurisdiction and foster care to appear personally on a
17 showing of good cause and a showing that the personal appearance will not
18 create an undue hardship for him or her.

- 19
20 (3) The telephone appearance must be permitted at no cost to the nonminor
21 dependent or the person requesting to return juvenile court jurisdiction and
22 foster care.

23
24 *Rule 5.900 adopted effective January 1, 2012.*

25
26 **Rule 5.903. Nonminor dependent status review hearing (§§ 224.1(b), 295, 366(f),**
27 **366.1, 366.3)**

28
29 **(a) Purpose**

30
31 The primary purpose of the nonminor dependent status review hearing is to focus
32 on the goals and services described in the nonminor dependent's Transitional
33 Independent Living Case Plan and the efforts and progress made toward achieving
34 independence and establishing lifelong connections with caring and committed
35 adults.

36
37 **(b) Setting and conduct of a nonminor dependent status review hearing**

- 38
39 (1) A status review hearing for a nonminor dependent conducted by the court or
40 by a local administrative review panel must occur no less frequently than
41 once every 6 months.

1 (2) The hearing must be placed on the appearance calendar, held before a judicial
2 officer, and recorded by a court reporter under any of the following
3 circumstances:

4
5 (A) The hearing is the first hearing following the nonminor dependent's
6 18th birthday;

7
8 (B) The hearing is the first hearing following the resumption of juvenile
9 court jurisdiction over a person as a nonminor dependent under rule
10 5.906;

11
12 (C) The nonminor dependent or the nonminor dependent's attorney
13 requests that the hearing be conducted by the court; or

14
15 (D) It has been 12 months since the hearing was conducted by the court.
16

17 (3) The hearing may be attended, as appropriate, by participants invited by the
18 nonminor dependent in addition to those entitled to notice under (c).

19
20 (4) The nonminor dependent may appear by telephone as provided in rule 5.900
21 at a hearing conducted by the court.

22
23 (5) The hearing must be continued for no more than five court days for the social
24 worker, probation officer, or nonminor dependent to submit additional
25 information as ordered by the court if the court determines that the report and
26 Transitional Independent Living Case Plan submitted by the social worker or
27 probation officer do not provide the information required by (d)(1) and the
28 court is unable to make all the findings and orders required by (e).

29
30 **(c) Notice of hearing (§ 295)**

31
32 (1) The social worker or probation officer must serve written notice of the
33 hearing in the manner provided in section 295, and to all persons required to
34 receive notice under section 295, except notice to the parents of the nonminor
35 dependent is not required.

36
37 (2) The written notice served on the nonminor dependent must include:

38
39 (A) A statement that he or she may appear for the hearing by telephone; and

40
41 (B) Instructions about the local court procedures for arranging to appear
42 and appearing at the hearing by telephone.
43

1 (3) Proof of service of notice must be filed by the social worker or probation
2 officer at least five court days before the hearing.

3
4 **(d) Reports**

5
6 (1) The social worker or probation officer must submit a report to the court that
7 includes information regarding:

8
9 (A) The continuing necessity for the nonminor dependent's placement and
10 the facts supporting the conclusion reached;

11
12 (B) The appropriateness of the nonminor dependent's current foster care
13 placement;

14
15 (C) The nonminor dependent's plans to remain under juvenile court
16 jurisdiction including the criteria in section 11403(b) that he or she
17 meets;

18
19 (D) The efforts made by the social worker or probation officer to help the
20 nonminor dependent meet the criteria in section 11403(b);

21
22 (E) Verification that the nonminor dependent was provided with the
23 information, documents, and services as required under section 391(e);

24
25 (F) How and when the Transitional Independent Living Case Plan was
26 developed, including the nature and the extent of the nonminor
27 dependent's participation in its development, and for the nonminor
28 dependent who has elected to have the Indian Child Welfare Act
29 continue to apply, the extent of consultation with the tribal
30 representative;

31
32 (G) The efforts made by the social worker or probation officer to comply
33 with the nonminor dependent's Transitional Independent Living Case
34 Plan, including efforts to finalize the permanent plan and prepare him
35 or her for independence;

36
37 (H) Progress made toward meeting the Transitional Independent Living
38 Case Plan goals and the need for any modifications to assist the
39 nonminor dependent in attaining the goals;

40
41 (I) The efforts made by the social worker or probation officer to maintain
42 relationships between the nonminor dependent and individuals who are
43 important to him or her, including the efforts made to establish and

1 maintain relationships with caring and committed adults who can serve
2 as a lifelong connection;

3
4 (J) The efforts made by the social worker or probation officer to establish
5 or maintain the nonminor dependent's relationship with his or her
6 siblings who are under the juvenile court's jurisdiction as required in
7 section 366(a)(1)(D).
8

9 (2) The social worker or probation officer must submit with his or her report the
10 Transitional Independent Living Case Plan.
11

12 (3) The social worker or probation officer must file with the court the report
13 prepared for the hearing and the Transitional Independent Living Case Plan at
14 least 10 calendar days before the hearing, and provide copies of the report
15 and other documents to the nonminor dependent, all attorneys of record, and
16 for the nonminor dependent who has elected to have the Indian Child Welfare
17 Act continue to apply, the tribal representative.
18

19 **(e) Findings and orders**
20

21 The court must consider the safety of the nonminor dependent, and the following
22 judicial determinations and orders must be made on the record and included in the
23 written, signed court documentation of the hearing:
24

25 (1) Findings
26

27 (A) Whether notice was given as required by law;
28

29 (B) Whether the nonminor dependent's continuing placement is necessary;
30

31 (C) Whether the nonminor dependent's current placement is appropriate;
32

33 (D) Whether the Transitional Independent Living Case Plan includes a plan
34 for the nonminor dependent to satisfy one or more of the criteria in
35 section 11403(b);
36

37 (E) The specific criteria in section 11403(b) the nonminor dependent
38 satisfied since the last hearing held under this rule;
39

40 (F) The specific criteria in section 11403(b) it is anticipated the nonminor
41 dependent will satisfy during the next six months;
42

- 1 (G) Whether reasonable efforts were made and assistance provided by the
2 social worker or probation officer to help the nonminor dependent
3 establish and maintain compliance with section 11403(b);
4
- 5 (H) Whether the nonminor dependent was provided with the information,
6 documents, and services as required under section 391(e);
7
- 8 (I) Whether the Transitional Independent Living Case Plan was developed
9 jointly by the nonminor dependent and the social worker or probation
10 officer, reflects the living situation and services that are consistent in
11 the nonminor dependent's opinion with what he or she needs to gain
12 independence, and sets out the benchmarks that indicate how both will
13 know when independence can be achieved;
14
- 15 (J) For the nonminor dependent who has elected to have the Indian Child
16 Welfare Act continue to apply, whether the representative from his or
17 her tribe was consulted during the development of the Transitional
18 Independent Living Case Plan;
19
- 20 (K) Whether reasonable efforts were made by the social worker or
21 probation officer to comply with the Transitional Independent Living
22 Case Plan, including efforts to finalize the nonminor dependent's
23 permanent plan and prepare him or her for independence;
24
- 25 (L) Whether the Transitional Independent Living Case Plan includes
26 appropriate and meaningful independent living skill services that will
27 assist him or her with the transition from foster care to independent
28 living;
29
- 30 (M) Whether the nonminor dependent signed and received a copy of his or
31 her Transitional Independent Living Case Plan;
32
- 33 (N) The extent of progress made by the nonminor dependent toward
34 meeting the Transitional Independent Living Case Plan goals and any
35 modifications needed to assist in attaining the goals;
36
- 37 (O) Whether reasonable efforts were made by the social worker or
38 probation officer to maintain relationships between the nonminor
39 dependent and individuals who are important to him or her, including
40 the efforts made to establish and maintain relationships with caring and
41 committed adults who can serve as lifelong connections; and
42

1 (P) Whether reasonable efforts were made by the social worker or
2 probation officer to establish or maintain the nonminor dependent's
3 relationship with his or her siblings who are under the juvenile court's
4 jurisdiction as required in section 366(a)(1)(D).

5
6 (2) Orders

7
8 (A) Order the continuation of juvenile court jurisdiction and set a nonminor
9 dependent review hearing under this rule within six months, and:

10
11 (i) Order a permanent plan consistent with the nonminor
12 dependent's Transitional Independent Living Case Plan, and

13
14 (ii) Specify the likely date by which independence is anticipated to
15 be achieved; or

16
17 (B) Order the continuation of juvenile court jurisdiction and set a hearing to
18 consider termination of juvenile court jurisdiction over a nonminor
19 under rule 5.555 within 30 days; or

20
21 (C) Order termination of juvenile court jurisdiction pursuant to rule 5.555 if
22 this nonminor dependent status review hearing was heard at the same
23 time as a hearing under rule 5.555.

24
25 *Rule 5.903 adopted effective January 1, 2012.*

26
27 **Rule 5.906. Request by nonminor for the juvenile court to resume jurisdiction**
28 **(§§ 224.1(b), 303, 388(e))**

29
30 (a) **Purpose**

31
32 This rule provides the procedures that must be followed when a nonminor wants to
33 have juvenile court jurisdiction resumed over him or her as a nonminor dependent
34 described in section 11400(v).

35
36 (b) **Contents of the request**

37
38 (1) The request to have the juvenile court resume jurisdiction must be made on
39 the *Request to Return to Juvenile Court Jurisdiction and Foster Care* (form
40 JV-466).

- 1 (2) The request must be liberally construed in favor of its sufficiency. It must be
2 verified by the nonminor or the nonminor's designee and, to the extent
3 known to the nonminor, must include the following information:
4
- 5 (A) The nonminor's name and date of birth;
6
- 7 (B) The nonminor's address and contact information, unless the nonminor
8 requests that this information be kept confidential from those persons
9 entitled to access to the juvenile court file, including his or her parents,
10 by filing *Confidential Information—Request to Return to Juvenile*
11 *Court Jurisdiction and Foster Care* (form JV-468). Form JV-468 must
12 be kept in the court file under seal, and only the court, the child welfare
13 services agency, the probation department, or the Indian tribe with an
14 agreement under section 10553.1 to provide child welfare services to
15 Indian children (Indian tribal agency), and the nonminor's attorney may
16 have access to this information;
17
- 18 (C) The name and action number or court file number of the nonminor's
19 case and the name of the juvenile court that terminated its dependency
20 jurisdiction, delinquency jurisdiction, or transition jurisdiction and
21 retained general jurisdiction for the purpose of considering a request to
22 assume or resume its jurisdiction over him or her as a nonminor
23 dependent;
24
- 25 (D) The date the juvenile court entered the order terminating its
26 dependency jurisdiction, delinquency jurisdiction, or transition
27 jurisdiction and retained general jurisdiction over him or her.
28
- 29 (E) If the nonminor wants his or her parents or former legal guardians to
30 receive notice of the filing of the request and the hearing, the name and
31 residence addresses of the nonminor's parents or former guardians;
32
- 33 (F) The name and telephone number of the court-appointed attorney who
34 represented the nonminor at the time the juvenile court terminated its
35 dependency jurisdiction, delinquency jurisdiction, or transition
36 jurisdiction and retained general jurisdiction if the nonminor wants that
37 attorney to be the attorney appointed to represent him or her for the
38 purposes of the hearing on the request;
39
- 40 (G) If the nonminor is an Indian child within the meaning of the Indian
41 Child Welfare Act and he or she chooses to have the Indian Child
42 Welfare Act apply to him or her, the name of the tribe and the name,
43 address, and telephone number of his or her tribal representative;

1
2 (H) If the nonminor had a Court Appointed Special Advocate (CASA)
3 when he or she was a dependent or ward of the court and wants the
4 CASA to receive notice of the filing of the request and the hearing, the
5 CASA's name;

6
7 (I) The condition or conditions under section 11403(b) that the nonminor
8 intends to satisfy; and

9
10 (J) Whether the nonminor requires assistance to maintain or secure an
11 appropriate, supervised placement, or is in need of immediate
12 placement and will agree to a supervised placement under a voluntary
13 reentry agreement.

14
15 (3) The court may dismiss without prejudice a request filed under this rule that is
16 not verified.

17
18 **(c) Filing the request**

19
20 (1) The form JV-466 may be filed by the nonminor or the county child welfare
21 services, probation department, or Indian tribe (placing agency) on behalf of
22 the nonminor.

23
24 (2) For the convenience of the nonminor, the form JV-466 and, if the nonminor
25 wishes to keep his or her contact information confidential, the *Confidential*
26 *Information—Request to Return to Juvenile Court Jurisdiction and Foster*
27 *Care* (form JV-468) may be:

28
29 (A) Filed with the juvenile court that retained general jurisdiction in the
30 same action in which the nonminor was found to be a dependent or
31 ward of the court, or

32
33 (B) Submitted to the juvenile court in the county in which the nonminor
34 currently resides;

35
36 (i) The court clerk must record the date and time received on the
37 face of the originals submitted and provide a copy of the originals
38 marked as received to the nonminor at no cost to the him or her.

39
40 (ii) To ensure receipt of the original JV-466 and, if submitted the JV-
41 468, by the court that retained general within five court days as
42 required in section 388(e), the court clerk must forward those
43 originals to the clerk of the court that retained general jurisdiction

1 within two court days of submission of the originals by the
2 nonminor.

3
4 (iii) The court in the county in which the nonminor resides is
5 responsible for all costs of processing, copying, and forwarding
6 the form JV-466 and form JV-468 to the clerk of the court that
7 retained general jurisdiction.

8
9 (iv) The court clerk in the county in which the nonminor resides must
10 retain a copy of the documents submitted.

11
12 (v) The form JV-466 and, if submitted, the form JV-468 must be
13 filed immediately upon receipt by the clerk of the juvenile court
14 that retained general jurisdiction.

15
16 (C) For a nonminor living outside the state of California, the form JV-466
17 and, if the nonminor wishes to keep his or her contact information
18 confidential, the form JV-468 must be filed with the juvenile court that
19 retained general jurisdiction.

20
21 (3) If form JV-466 is filed by the nonminor, within two court days of its filing
22 with the clerk of the court in the county that retained general jurisdiction, the
23 clerk of that court must notify the placing agency that was supervising the
24 nonminor when juvenile court jurisdiction was terminated that the nonminor
25 has filed form JV-466 and provide the placing agency with the nonminor's
26 contact information. The notification must be by telephone, fax, e-mail, or
27 other method approved by the presiding juvenile court judge that will ensure
28 prompt notification and inform the placing agency that a copy of form JV-
29 466 will be served on the agency and that one is currently available in the
30 office of the juvenile court clerk.

31
32 (4) If form JV-466 has not been filed at the time the nonminor completes the
33 voluntary reentry agreement described in section 11400(z), the placing
34 agency must file form JV-466 on the nonminor's behalf within 15 court days
35 of the date the voluntary reentry agreement was signed, unless the nonminor
36 files form JV-466 prior to the expiration of the 15 court days.

37
38 (5) No filing fees are required for the filing of form JV-466 and, if filed, form
39 JV-468. An endorsed, filed copy of each form filed must be provided at no
40 cost to the nonminor or the placing agency that filed the request on the
41 nonminor's behalf.
42

1 **(d) Determination of prima facie showing**

- 2
- 3 (1) Within three court days of the filing of form JV-466 with the clerk of the
- 4 juvenile court that retained general jurisdiction, a juvenile court judicial
- 5 officer must review form JV-466 and determine whether a prima facie
- 6 showing has been made that the nonminor meets all of the criteria set forth
- 7 below in (d)(1)(A)–(D) and enter an order as set forth in (d)(2) or (d)(3).
- 8
- 9 (A) The nonminor was previously under juvenile court jurisdiction subject
- 10 to an order for foster care placement when he or she attained 18 years
- 11 of age;
- 12
- 13 (B) On and after January 1, 2012, the nonminor will not have not attained
- 14 19 years of age; or commencing January 1, 2013, he or she will not
- 15 have attained 20 years of age; or commencing on January 1, 2014, he or
- 16 she will not have attained 21 years of age;
- 17
- 18 (C) The nonminor wants assistance to maintain or secure an appropriate,
- 19 supervised placement or is in need of immediate placement and agrees
- 20 to a supervised placement under a voluntary reentry agreement; and
- 21
- 22 (D) The nonminor intends to satisfy at least one of the conditions as
- 23 described in section 11403(b) and set forth below:
- 24
- 25 (i) Complete secondary education or a program leading to an
- 26 equivalent credential.
- 27
- 28 (ii) Enroll in an institution that provides postsecondary or vocational
- 29 education.
- 30
- 31 (iii) Participate in a program or activity designed to promote or
- 32 remove barriers to employment.
- 33
- 34 (iv) Be employed for at least 80 hours per month.
- 35
- 36 (v) Incapable of doing any of the activities described in
- 37 subparagraphs (i) to (iv), inclusive, due to a medical condition;
- 38
- 39 (2) If the court determines that a prima facie showing has not been made, the
- 40 court must enter a written order denying the request, listing the issues that
- 41 resulted in the denial and informing the nonminor that a new JV-466 may be
- 42 filed when those issues are resolved.
- 43

- 1 (A) The court clerk must serve on the nonminor:
- 2
- 3 (i) A copy of the written order;
- 4
- 5 (ii) A blank copy of *Request to Return to Juvenile Court Jurisdiction*
6 *and Foster Care* (form JV-466) and *Confidential Information—*
7 *Request to Return to Juvenile Court Jurisdiction and Foster*
8 *Care* (form JV-466);
- 9
- 10 (iii) A copy of *How to Ask the to Return to Juvenile Court*
11 *Jurisdiction and Foster Care* (form JV-464-INFO); and
- 12
- 13 (iv) The names and contact information for those attorneys approved
14 by the court to represent children in juvenile court proceedings
15 who have agreed to provide a consultation to any nonminor
16 whose request was denied due to the failure to make a prima facie
17 showing.
- 18
- 19 (B) The court clerk must serve on the placing agency a copy of the written
20 order.
- 21
- 22 (C) Service must be by personal service or first-class mail within two court
23 days of the issuance of the order.
- 24
- 25 (D) A proof of service must be filed.
- 26
- 27 (3) If the judicial officer determines that a prima facie showing has been made,
28 the judicial officer must issue a written order:
- 29
- 30 (A) Directing the court clerk to set the matter for a hearing, and
- 31
- 32 (B) Appointing an attorney to represent the nonminor for the sole purpose
33 of the hearing on the request.
- 34
- 35 (e) **Appointment of attorney**
- 36
- 37 (1) If the nonminor included on the form JV-466 a request for the appointment of
38 the court-appointed attorney who represented the nonminor during the period
39 of time he or she was a ward or dependent or nonminor dependent, the
40 judicial officer must appoint that attorney for the sole purpose of the hearing
41 on the request, if the attorney is available to accept such an appointment.
- 42

- 1 (2) If the nonminor did not request the appointment of his or her former court-
2 appointed attorney, the judicial officer must appoint an attorney to represent
3 the nonminor for the sole purpose of the hearing on the request. The attorney
4 must be selected from the panel or organization of attorneys approved by the
5 court to represent children in juvenile court proceedings.
6
- 7 (3) In addition to complying with the requirements in (g)(1) for service of notice
8 of the hearing, the juvenile court clerk must notify the attorney of his or her
9 appointment as soon as possible, but no later than one court day from the date
10 the order for his or her appointment was issued under (d)(3). This notification
11 must be made by telephone, fax, e-mail, or other method approved by the
12 presiding juvenile court judge that will ensure prompt notification. The notice
13 must also include the nonminor's contact information and inform the attorney
14 that a copy of the JV-466 will be served on him or her and that one is
15 currently available in the office of the juvenile court clerk.
16
- 17 (4) If the request is granted, the court must continue the attorney's appointment
18 to represent the nonminor regarding matters related to his or her status as a
19 nonminor dependent until the jurisdiction of the juvenile court is terminated,
20 unless the court finds that the nonminor would not benefit from the
21 appointment of an attorney.
22
- 23 (A) In order to find that a nonminor would not benefit from the
24 appointment of an attorney, the court must find all of the following:
25
- 26 (i) The nonminor understands the nature of the proceedings;
27
- 28 (ii) The nonminor is able to communicate and advocate effectively
29 with the court, other attorneys, and other parties, including social
30 workers, probation officers, and other professionals involved in
31 the case; and
32
- 33 (iii) Under the circumstances of the case, the nonminor would not
34 gain any benefit from representation by an attorney.
35
- 36 (B) If the court finds that the nonminor would not benefit from
37 representation by an attorney, the court must make a finding on the
38 record as to each of the criteria in (e)(4)(A) and state the reasons for
39 each finding.
40
- 41 (5) Representation of the nonminor by the court-appointed attorney for the
42 hearing on the request to return to juvenile court jurisdiction and for matters

1 related to his or her status as a nonminor dependent must be at no cost to the
2 nonminor.

- 3
4 (6) If the nonminor chooses to be represented by an attorney other than a court-
5 appointed attorney, the fees for an attorney retained by the nonminor are the
6 nonminor's responsibility.

7
8 **(f) Setting the hearing**

- 9
10 (1) Within two court days of the issuance of the order directing the court clerk to
11 do so, the court clerk must set a hearing on the juvenile court's calendar
12 within 15 court days from the date the JV-466 was filed with the court that
13 retained general jurisdiction.
14
15 (2) The hearing must be placed on the appearance calendar, heard before a
16 juvenile court judicial officer, and recorded by a court reporter.

17
18 **(g) Notice of hearing**

- 19
20 (1) The juvenile court clerk must serve notice as soon as possible but no later
21 than five court days before the date the hearing is set, as follows:
22
23 (A) The notice of the date, time, place, and purpose of the hearing and a
24 copy of the JV-466 must be served on the nonminor, the nonminor's
25 attorney, and the child welfare services agency, the probation
26 department, or the Indian tribal agency that was supervising the
27 nonminor when the juvenile court entered the order retaining general
28 jurisdiction over the nonminor.
29
30 (B) The notice of the date, time, place, and purpose of the hearing must be
31 served on the nonminor's parents only if the nonminor included in the
32 JV-466 a request that notice be provided to his or her parents.
33
34 (C) The notice of the date, time, place, and purpose of the hearing must be
35 served on the nonminor's tribal representative if the nonminor is an
36 Indian child and indicated on the JV-466 his or her choice to have the
37 Indian Child Welfare Act apply to him or her as a nonminor dependent.
38
39 (D) The notice of the date, time, place, and purpose of the hearing must be
40 served on the local CASA office if the nonminor had a CASA and
41 included on the JV-466 a request that notice be provided to his or her
42 former CASA.
43

- 1 (2) The written notice served on the nonminor dependent must include:
2
3 (A) A statement that the nonminor may appear for the hearing by
4 telephone; and
5
6 (B) Instructions regarding the local juvenile court procedures for arranging
7 to appear and appearing at the hearing by telephone.
8
9 (3) Service of the notice must be by personal service or by first-class mail.
10
11 (4) Proof of service of notice must be filed by the juvenile court clerk at least two
12 court days prior to the hearing.
13

14 **(h) Reports**
15

- 16 (1) The social worker, probation officer, or Indian tribal agency case worker
17 (tribal case worker) must submit a report to the court that includes:
18
19 (A) Confirmation that the nonminor was previously under juvenile court
20 jurisdiction subject to an order for foster care placement when he or she
21 attained 18 years of age, that the juvenile court retained general
22 jurisdiction over the nonminor, and that on and after January 1, 2012,
23 the nonminor will not have not attained 19 years of age; or
24 commencing January 1, 2013, he or she will not have attained 20 years
25 of age; or commencing on January 1, 2014, he or she will not have
26 attained 21 years of age;
27
28 (B) The condition or conditions under section 11403(b) that the nonminor
29 intends to satisfy;
30
31 (C) The social worker, probation officer, or tribal case worker's opinion as
32 to whether continuing in a foster care placement is in the nonminor's
33 best interests and recommendation about the resumption of juvenile
34 court jurisdiction over the nonminor as a nonminor dependent;
35
36 (D) Whether the nonminor and the placing agency have entered into a
37 reentry agreement for placement in a supervised setting under the
38 placement and care responsibility of the placing agency;
39
40 (E) The type of placement recommended if the request to return to juvenile
41 court jurisdiction and foster care is granted;
42

(F) If the type of placement recommended is a placement in a setting where minor dependents also reside, the results of the background check of the nonminor under section 16504.5.

(i) The background check under section 16504.5 is required only if a minor dependent resides in the placement under consideration for the nonminor.

(ii) A criminal conviction is not a bar to a return to foster care and the resumption of juvenile court jurisdiction over the nonminor as a nonminor dependent.

(2) At least two court days before the hearing, the social worker, probation officer, or tribal case worker must file the report and any supporting documentation with the court and provide a copy to the nonminor and to his or her attorney of record; and

(3) If the court determines that the report and other documentation submitted by the social worker, probation officer, or tribal case worker does not provide the information required by (h)(1) and the court is unable to make the findings and orders required by (i), the hearing must be continued for no more than five court days for the social worker, probation officer, tribal case worker, or nonminor to submit additional information as ordered by the court.

(i) Findings and orders

The court must read and consider, and state on the record that it has read and considered, the report; supporting documentation submitted by the social worker, probation officer, or tribal case worker; the evidence submitted by the nonminor; and any other evidence. The following judicial findings and orders must be made on the record and included in the written, signed court documentation of the hearing:

(1) Findings

(A) Whether notice was given as required by law;

(B) Whether the nonminor was previously under juvenile court jurisdiction subject to an order for foster care placement when he or she attained 18 years of age;

(C) Whether the juvenile court retained general jurisdiction over the nonminor;

- 1
2 (D) Whether on and after January 1, 2012, the nonminor will not have not
3 attained 19 years of age; or commencing January 1, 2013, he or she will
4 not have attained 20 years of age; or commencing on January 1, 2014,
5 he or she will not have attained 21 years of age;
6
7 (E) Whether the nonminor intends to satisfy a condition or conditions
8 under section 11403(b);
9
10 (F) The condition or conditions that the nonminor intends to satisfy under
11 section 11403(b);
12
13 (G) Whether continuing in a foster care placement is in the nonminor's best
14 interests;
15
16 (H) Whether the nonminor and the placing agency have entered into a
17 reentry agreement for placement in a supervised setting under the
18 placement and care responsibility of the placing agency; and
19
20 (I) Whether a nonminor who is an Indian child chooses to have the Indian
21 Child Welfare Act apply to him or her as a nonminor dependent.
22

23 (2) Orders
24

- 25 (A) If the court finds that the nonminor comes within the age requirements
26 under (i)(1)(D), that the juvenile court entered an order retaining
27 general jurisdiction over the nonminor, that the nonminor does intend
28 to satisfy at least one condition under section 11403(b), and that the
29 nonminor and placing agency have entered into a reentry agreement,
30 the court must:
31
32 (i) Grant the request and enter an order resuming juvenile court
33 jurisdiction over the nonminor as a nonminor dependent and
34 vesting responsibility for the nonminor's placement and care with
35 the placing agency;
36
37 (ii) Order the social worker, probation officer, or tribal case worker
38 to develop with the nonminor and file with the court within 60
39 days a new Transitional Independent Living Case Plan;
40
41 (iii) Order the social worker or probation officer to consult with the
42 tribal representative regarding a new Transitional Independent
43 Living Case Plan for the nonminor who chooses to have the

1 Indian Child Welfare Act apply to him or her as a nonminor
2 dependent and who is not under the supervision of a tribal case
3 worker;
4

5 (iv) Set a nonminor dependent review hearing under rule 5.903 within
6 the next six months; and
7

8 (v) Make the findings and enter the appropriate orders under (e)(4)
9 regarding appointment of an attorney for the nonminor.
10

11 (B) If the court finds that the nonminor comes within the age requirements
12 under (i)(1)(D) and that the juvenile court entered an order retaining
13 general jurisdiction over the nonminor, but the nonminor does not
14 intend to satisfy at least one of the conditions under section 11403(b)
15 and/or the nonminor and placing agency have not entered into a reentry
16 agreement, the court must:
17

18 (i) Enter an order denying the request, listing the reasons for the
19 denial, and informing the nonminor that a new JV-466 may be
20 filed when those circumstances change;
21

22 (ii) Enter an order terminating the appointment of the attorney
23 appointed by the court to represent the nonminor, effective seven
24 calendar days after the hearing; and
25

26 (iii) In addition to the service of a copy of the written order as
27 required in (i)(3), the juvenile court clerk must cause to be served
28 on the nonminor a blank copy of the *Request to Return to*
29 *Juvenile Court Jurisdiction and Foster Care* (form JV-466) and
30 *Confidential Information—Request to Return to Juvenile Court*
31 *Jurisdiction and Foster Care* (form JV-468), and a copy of *How*
32 *to Ask to Return to Juvenile Court Jurisdiction and Foster Care*
33 (form JV-464-INFO).
34

35 (C) If the court finds that the nonminor does not come within the age
36 requirements under (i)(1)(D) and/or the juvenile court did not retain
37 general jurisdiction over the nonminor, the court must:
38

39 (i) Enter an order denying the request to have juvenile court
40 jurisdiction resumed; and
41

(ii) Enter an order terminating the appointment of the attorney appointed by the court to represent the nonminor, effective seven calendar days after the hearing.

(3) Findings and orders: service

(A) The written findings and order must be served by the juvenile court clerk on all persons provided with notice of the hearing under (g)(1).

(B) Service must be by personal service or first-class mail within three court days of the issuance of the order.

(C) A proof of service must be filed.

Rule 5.906 adopted effective January 1, 2012.

Advisory Committee Comment

Assembly Bill 12 (Beall; Stats. 2010, ch. 559), the California Fostering Connections to Success Act and Assembly Bill 212 (Beall; Stats. 2011, ch. 459), implement the federal Fostering Connections to Success and Increasing Adoptions Act, Pub.L. No. 110-351, which provides funding resources to extend the support of the foster care system to children who are still in a foster care placement on their 18th birthday. Every effort was made in the development of the rules and forms to provide an efficient framework for the implementation of this important and complex legislation.

The extension of benefits for nonminors up to 18 years of age during the first year and for nonminors up to 19 years of age during the following year is fully provided for in Assembly Bill 12 and does not require further action by the Legislature; however, extension of those benefits to nonminors between 20 and 21 years of age is contingent upon an appropriation by the Legislature. (Welf. & Inst. Code, § 11403(k).)

Rule 8.385. Proceedings after the petition is filed

(a)–(b) ***

(c) Petition filed in an inappropriate court

(1) * * *

(2) A Court of Appeal ~~must~~ should deny without prejudice a petition for writ of habeas corpus that challenges the denial of parole or the petitioner's

1 suitability for parole if the issue was not first adjudicated by the trial court
2 that rendered the underlying judgment.

3
4 (3) * * *

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6 *(Subd (c) amended effective January 1, 2012.)*

7
8 (d)–(f) ***

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10 *Rule 8.385 amended effective January 1, 2012; adopted effective January 1, 2009.*

11
12 **Advisory Committee Comment**

13
14 **Subdivision (c).** Except for subdivision (c)(2), rule 8.385(c) restates former section 6.5 of the
15 Standards of Judicial Administration. Subdivision (c)(2) is based on the California Supreme
16 Court decision in *In re Roberts* (2005) 36 Cal.4th 575, which provides that petitions for writ of
17 habeas corpus challenging denial or suitability for parole ~~are~~ should first ~~to~~ be adjudicated in the
18 trial court that rendered the underlying judgment. The committee notes, however, that courts of
19 appeal have original jurisdiction in writ proceedings and may, under appropriate circumstances,
20 adjudicate a petition that challenges the denial or suitability of parole even if the petition was not
21 first adjudicated by the trial court that rendered the underlying judgment. (*In re Kler* (2010) 188
22 Cal.App.4th 1399.) A court of appeal may, for example, adjudicate a petition that follows the
23 court's prior reversal of a denial of parole by the Board of Parole Hearings where the issues
24 presented by the petition directly flow from the court of appeal's prior decision and the limited
25 hearing conducted. (*Id.* at 1404–05.)

26
27 **Subdivision (d).** * * *